LLOYD'S

linx UNDERWRITING

THE POLICY CONTAINS A CLAUSE THAT MAY LIMIT THE AMOUNT PAYABLE

Effected with Lloyd's Underwriters (hereinafter called "The Insurer") through Lloyd's Approved Coverholder (hereinafter called "The Coverholder"):

Linx Underwriting Solutions Inc., 20 Bay Street, 21st Floor, Toronto, Ontario M5J 2N9

Insurance Broker: Aon - Vancouver, 401 West Georgia Street, Suite 1200, Vancouver, British Columbia V6B 5A1
Telephone: 604-688-4442

Declarations

In consideration of the premium stated, the Insurer(s) will indemnify the Insured in accordance with the terms and conditions of this Policy and attached forms and endorsements. Insurance is provided for only those coverages for which forms and endorsements are attached and specific amounts of insurance are stated.

Insured and Policy Information

Named Insured	Pacific Pilotage Authority dba PSTAR	Policy No.	PCG10732
Mailing Address	Suite 1000, 1130 W Pender Street, Vancouver, British Columbia V6E 4A4	Replacing Policy No.	
Policy Status	New Business		
Policy Period	27 March 2026 - 27 March 2027 Both days at 12:01 a.m. Standard Time at the address of the Named Insured as stated herein		
Premium	$2,500		
Currency	CANADIAN DOLLAR		
Minimum Retained Premium	$2,500		
Description of Operations or Professional Services	Marine Pilotage Simulator Training		

Important Information for Insureds

PLEASE READ ALL DOCUMENTS

This Policy is issued and accepted subject to the following provisions, stipulations and conditions which form part of this Policy, together with other provisions, agreements, or conditions which may be endorsed or added.



Linx Underwriting Solutions Inc.

Date: 30-MAR-2026
Issued In: Toronto, Ontario

For Aon's Privacy Policy, please refer to: http://solutions.aon.ca/linx/privacy.aspx

Insurers

Class	Insurer	Interest	Premium
Commercial General Liability	Lloyd's Underwriters led by Westfield Specialty Managing Agency, Syndicate 1200 UMR No. B1526PTPRO2500195	100.00%	$2,500

TO REPORT A CLAIM, CONTACT:

Commercial General Liability

Crawford and Company (Canada) Inc.
100 Milverton Drive, Suite 300, Mississauga, Ontario L5R 4H1
1.800.522.1380
newcrawfordclaims@crawco.ca

Commercial General Liability

Limit(s) of Liability

SEF94 - Legal Liability for Damage to Hired Automobiles	Each Occurrence	50,000
Bodily Injury and Property Damage Liability	Each Occurrence	5,000,000
Personal and Advertising Injury Liability	Each Occurrence	5,000,000
Medical Expenses - Per Person		10,000
Medical Expenses - Per Accident		50,000
Tenants Legal Liability - All Risks	All Risks	1,000,000
Employee Benefits Liability	Each Claim	250,000
Firefighting Expenses	Each Occurrence	100,000
Non-Owned Automobile Liability - SPF 6	Each Occurrence	5,000,000
Sudden & Accidental Pollution	Each Occurrence	1,000,000
Bodily Injury	Each Occurrence	2,000,000

Aggregate Limit(s)

Products and Completed Operations Aggregate	5,000,000
Medical Expenses - Per Accident	50,000
General Aggregate Limit	20,000,000
Employee Benefits Liability	1,000,000
Sudden & Accidental Pollution	1,000,000
Bodily Injury	2,000,000

Deductible

SEF94 - Legal Liability for Damage to Hired Automobiles	Each Occurrence	1,000
Bodily Injury and Property Damage Liability	Each Occurrence	25,000
Personal and Advertising Injury Liability	Each Occurrence	25,000
Tenants Legal Liability - All Risks	All Risks	1,000
Employee Benefits Liability	Each Claim	25,000
Firefighting Expenses	Each Occurrence	25,000
Non-Owned Automobile Liability - SPF 6	Each Occurrence	0
Sudden & Accidental Pollution	Each Occurrence	25,000
Bodily Injury	Each Occurrence	25,000

Forms Attached

LMA3200	Sanctions Suspension Clause
LMA5028B	Service of Suit Clause (Canada)
LSW1001	Several Liability Notice
LSW1543E	Notice Concerning Personal Information
LSW1554	Subscription Policy
LMA5190	Canada Subscription Policy
LSW1548D	Identification Of Insurer / Action Against Insurer
LSW1565C	Code Of Consumers Rights And Responsibilities
LSW1542F	Lloyd's Underwriters' Policyholders' Complaint Protocol
NMA1477	Radioactive Contamination Exclusion Clause -Liability-Direct (U.S.A.)
LSW1815	Statutory Conditions (British Columbia)
LSW1814	Statutory Conditions (Alberta)
LSW1851	Statutory Conditions (Manitoba)
LINXL001	Quebec Amendatory Endorsement
LINXL002	English Language Clause
LINXL003	Cancellation of Policy
LINXL004	Short Rate Cancellation Table Endorsement
LBT001E	Commercial General Liability Wording
LBT004E	Employee Benefits Liability Endorsement

LBT005E	Fire Fighting Expenses Endorsement
LBT009E	SPF 6 - Non-Owned Automobile Liability Insurance Endorsement
LBT007E	SEF 94 - Legal Liability For Damage To Hired Automobiles
LBT060E	S.E.F. NO. 96 Contractual Liability Endorsement
LBT047E	O.E.F. 98B - Reduction of Coverage for Lessees or Drivers of Leased Vehicles Endorsement
LBT008E	SEF 99 - Excluding Long Term Leased Vehicle Endorsement
LBT076E	USA Conditions
LBT051E	Employers' Liability Extension
LBT118E	Limited Pollution Coverage
CM002E	Blanket Additional Insured Endorsement
CM004E	Anti-Stacking Endorsement
LBT107E	Pure Financial Loss Exclusion
LBT130E	Errors & Omissions Exclusion
LMA5528	Cyber and Data Exclusion
LMA5396	Communicable Disease Endorsement - Liability
LBT015E	Abuse or Molestation Exclusion
LBT117E	Marine Liability Exclusion

SANCTIONS SUSPENSION CLAUSE

It is a condition of this (re)insurance, and the reinsured agrees, that the provision of any cover, the payment of any claim and the provision of any benefit hereunder shall be suspended, to the extent that the provision of such cover, payment of such claim or provision of such benefit by the (re)insurer would expose that (re)insurer to any sanction, prohibition or restriction under any:
a. United Nations' resolution(s); or
b. the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

Such suspension shall continue until such time as the (re)insurer would no longer be exposed to any such sanction, prohibition or restriction.

5 October 2023
LMA3200

SERVICE OF SUIT CLAUSE (CANADA)

(Action against Insurer)

In any action to enforce the obligations of the Underwriters they can be designated or named as “Lloyd’s Underwriters” and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney In Fact in Canada for Lloyd’s Underwriters, whose address for such service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51, Toronto, Ontario, M5J 2J2. In addition Quebec Legal proceedings may be served to: c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montréal, Québec H3B 4N8.

15 April 2022

SEVERAL LIABILITY NOTICE

The subscribing insurers' obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations.

08/94

LSW1001

NOTICE CONCERNING PERSONAL INFORMATION

Introduction:

This notice describes how Lloyd’s Canada, as a data controller, collects, uses, shares and retains the personal information you provide and informs you about your choices regarding use, access and correction of your personal information. Lloyd’s is committed to ensuring that any personal data it receives is protected and handled in accordance with applicable data protection laws.

Consent to Collection:

By purchasing insurance or filing a claim on a policy issued by Lloyd’s Underwriters in Canada, (“Lloyd’s”), a customer provides Lloyd’s with their consent to the collection, use and disclosure of personal information. Consent is subject to the customer’s understanding of the nature, purpose, and consequences of the collection, use or disclosure of their personal information.

How we Collect Information:

We receive policy and claim information from sources such as: Lloyd’s Coverholders, Lloyd’s Managing Agents, insurance brokers, claims adjusters, and other insurance intermediaries.

What personal information we process about you and how it is used:

Information is collected and stored for the following purposes:

- the communication with Lloyd's policyholders
- the underwriting of policies
- the evaluation of claims
- the analysis of business results
- purposes required or authorized by law

We collect, process, and store the following personal information about you:

- Name
- Address including postal code and country
- Policy number
- Claim number
- Claim details

We also collect information about you when you visit www.lloyds.com . Further details can be found on our online Privacy & Cookies policy at Privacy - Lloyd's (lloyds.com)

We will not use your personal information for marketing purposes, and we will not sell your personal information to other parties.

Who we disclose your information to:

For our general business administration, efficiency, and accuracy purposes, your personal information might be shared among certain Lloyd's offices. In order to properly manage the Lloyd's market and exercise certain supervisory powers, we may share your personal information with the Lloyd's Market Participants. For example, to successfully resolve any complaint, we will require all relevant information about your coverage and concerns.

To help manage our business and deliver services, we may share your personal information with third party service providers such as IT suppliers and business services. We require all our service providers to respect the confidentiality and security of personal data.

We may be under legal or regulatory obligations to share your personal data with Canadian courts, regulators, and law enforcement bodies.

Personal information collected by Lloyd's may be stored in several provinces within Canada, as well as sent for processing to Lloyd's offices in international locations such as the United States, the United Kingdom and the European Union. The collection, use and disclosure of personal information will be subject to the laws of those jurisdictions. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to disclosing such personal information as may be required by the laws of that jurisdiction

For the purposes described above, personal information may be disclosed to Lloyd's related or affiliated organisations or companies, their agents/mandataries, and to certain IT suppliers and business services providers. As some of these entities and Business Services Providers may be located outside of Canada, including in the United States of America or another foreign jurisdiction such as the United Kingdom and the European Union, the collection, use and disclosure of personal information will be subject to the laws of that jurisdiction. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to these entities and Business Services Providers located outside of Canada to disclosing such personal information as required by the laws of that jurisdiction.

Use or disclosure without consent or further notification

Personal information may be used for a purpose other than those for which it was originally collected, without the consent, in the following situations:

- Legitimate business purposes: When it is necessary for the supply or delivery of a product or the provision of a service you have requested. We may also be required to share information to investigate allegations of fraud; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable laws.
- Interest of the individual: When it is clearly used for your benefit.

- Research, data analytics and AI. Only if it is used for purposes consistent with those it was collected, for study or research purposes, or for statistical purposes (where if the information has been de-identified).

Retention

We retain personal information for the purposes described above, for so long as is necessary to achieve those purposes. We will also retain information for so long as required by or regulatory obligations or by law.

Your rights

You have certain rights as an individual which you can exercise in relation to the information we hold about you. If you make a request to exercise any of your rights, we reserve the right to ask you for a proof of your identity. We aim to acknowledge your request as soon as possible and will address your query within one month from your request.

You have the following rights:

The right to access

You are entitled to a confirmation to how we are processing your data, a copy of your data, and information about the purposes of processing, who do we disclose it to, whether we transfer it abroad and how we protect it, how long we keep it for, what rights you have, where we got your data from and how you can make a complaint.

We may have to decline a request due to legal restrictions. This could include, but are not limited to:

- the information is subject to solicitor/client privilege,
- providing the information would reveal personal information about a third party, or
- providing the information could compromise the investigation of a claim.

The right to rectification

If you believe the personal information we hold about you is inaccurate or incomplete, you can request for it to be rectified.

The right to be forgotten

If you withdraw your consent, terminate a contract with us or you believe the personal information is no longer necessary for the purposes for which it was collected, you may request your data to be deleted. However, this will need to be balanced against other factors. For example, there may be certain regulatory obligations which may prevent us from completing your request.

The right to data portability

If we collected your information under a contract or your consent, you can request from us to transfer your personal information to provide it to another third party of your choice.

The right to withdraw consent

If we processed your personal information under your consent, you can withdraw consent to the communication or use of the information collected; assuming it is no longer needed for the purposes it was collected.

How to access your information and/or contact us

For further information about Lloyd's management of personal information or to request, access, corrections, deletion, or to make a complaint, please contract:

Lloyd's Underwriters
Attention: Nicole Seymour, Privacy Officer

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,
P.O. Box 51 Toronto, Ontario M5J 2J2
Tel: 1-416-360-1512
E-mail: LloydsCanada@lloyds.com

08/23
LSW1543E

LSW1543E

SUBSCRIPTION POLICY

IN CONSIDERATION OF THE INSURED having paid or agreed to pay each of the INSURERS named in the List of Subscribing Companies forming part hereof, or to INSURERS whose names are substituted therefor or added thereto by endorsement, hereinafter called “THE INSURERS”, the Premium set against its name in the List of Subscribing Companies (attached hereto),

THE INSURERS SEVERALLY AND NOT JOINTLY agree, each for the Sum(s) Insured or Percentage(s) and for the Coverage(s) Insured set against its name in the List of Subscribing Companies, and subject always to the terms and conditions of this Policy, that if a loss occurs for which insurance is provided by this Policy at any time while it is in force, they will indemnify the INSURED against the loss so caused; the liability of each insurer individually for such loss being limited to that proportion of the loss payable according to the terms and conditions of this Policy which the Sum Insured or the amount corresponding to the Percentage set against its name in the List of Subscribing Companies, or such other sum or percentage as may be substituted therefor by endorsement, bears to the total of the sums insured or of the amounts corresponding to the percentages of the sums insured respectively set out against the coverage concerned on the Declarations page(s).

That as regards each item of property insured which is lost or damaged at any time while this Policy is in force by a peril for which insurance is provided by the terms and conditions of this Policy, the liability of each Insurer individually shall be limited to whichever is the least of:

(a) that proportion of the actual cash value of the property at the time of the loss, destruction or damage which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual Insurer’s proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this Policy in respect of that property against that peril, or

(b) that proportion of the interest of THE INSURED in the property which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual insurer’s proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this policy in respect of that property against that peril, or

(c) that proportion of the limit of insurance stipulated in respect of the property lost, destroyed or damaged which the amount of the sum insured under this Policy in respect of that property against that peril corresponding to the individual insurer’s proportion of the total sum insured for the coverage concerned as appears from the entry set against its name in the List of Subscribing Companies bears to the total sum insured under this Policy in respect of that property against that peril,

Provided however, that where the insurance applies to the property of more than one person or interest THE INSURERS’ total liability for loss sustained by all such persons and interests shall be limited in the aggregate to the specified limit or limits of liability.

If this Policy contains a Co-Insurance Clause or a Guaranteed Amount (Stated Amount) Clause, and subject always to the limit of liability of each Insurer corresponding to the percentage of the sum insured by this Policy as set out above, no Insurer shall be liable for a greater proportion of any loss or damage to the property insured, than the sum insured by such Insurer bears to:

(a) that percentage, stated in the Co-Insurance Clause, of the actual cash value of the said property at the time of loss, or

(b) the Guaranteed Amount (Stated Amount) of total insurance stated in the Guaranteed Amount (Stated Amount) Clause, as the case may be.

If the insurance under this Policy is divided into two or more items, the foregoing shall apply to each item separately.

Wherever in this Policy, or in any endorsement attached hereto, reference is made to “The Company”, “The Insurer”, “This Company”, “we”, “us”, or “our”, reference shall be deemed to be made to each of the Insurers severally.

This policy is made and accepted subject to the foregoing provisions, and to the other provisions, stipulations and conditions contained herein, which are hereby specially referred to and made a part of this Policy, as well as such other provisions, agreements or conditions as may be endorsed hereon or added hereto.

IN WITNESS WHEREOF THE INSURERS through their representative(s) duly authorized by them for this purpose have executed and signed this Policy.

Property/Liability/Other

07/05

LSW1554

CANADA SUBSCRIPTION POLICY

Lloyd’s endorsement (only to be used in conjunction with LSW 1554 or an alternative subscription policy document containing the attributes of LSW 1554)

PLEASE NOTE - This notice contains important information - PLEASE READ CAREFULLY

Whereas the Subscription Policy (“the Policy”) has been entered into by the Coverholder in accordance with the authorization granted to the Coverholder by the underwriting members (“the members”) of the Lloyd’s syndicates as shown in the List of Subscribing Companies (and where the List of Subscribing Companies also notes the identity of the Coverholder);

Whereas the liability of each insurer under the Policy is several and not joint with other insurers party to the Policy;

The following additional provisions shall apply in respect of the participation of the members to the Policy. The following provisions are in addition to and not in substitution for the provisions, terms and condition as set out in the Policy (including any amendment or endorsement thereto).

SEVERAL LIABILITY

1. The proportion of liability under the Policy underwritten by the members of a Lloyd’s syndicate (being the total of the proportions underwritten by all the members of the syndicate taken together) is as provided for in the binding authority agreement number shown in the List of Subscribing Companies, or which may be obtained on application to the Coverholder whose name is also noted in the List of Subscribing Companies.

2. In the case of a Lloyd’s syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total being the total of the proportions of the total shown for the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members or other insurers. A member is liable only for that member’s proportion. A member is not jointly liable for any other member’s proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite the Policy. The business address of each member is Lloyd’s, One Lime Street, EC3M 7HA, United Kingdom. The identity of each member of a Lloyd’s syndicate and their respective proportion may be obtained in writing to Market Services, Lloyd’s at the above address.

3. Although reference is made at various points in this endorsement to “the Policy” in the singular, where the circumstances so require this should be read as a reference to Policies in the plural.

ACTION AGAINST INSURER

4. In any action to enforce the obligations of the members they can be designated or named as “Lloyd’s Underwriters” and such designation shall be binding on the members as if they had been individually named as defendant. Service of such proceedings may be validly made upon the attorney-in-fact in Canada for Lloyd’s Underwriters, whose address for service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51, Toronto, Ontario, M5J 2J2

LLOYD'S

linx UNDERWRITING

NOTICE

5. Any notice to the members may be validly given to the Coverholder whose signature and name appear in the List of Subscribing Companies.

10/20

LMA5190

LIMIT OF LIABILITY OR AMOUNT OF INSURANCE:

The insurance contract consists of this Declarations page as well as all coverage wordings, riders, or endorsements that are attached hereto.

IDENTIFICATION OF INSURER / ACTION AGAINST INSURER

This insurance has been effected in accordance with the authorization granted to the Coverholder by the Underwriting Members of the Syndicates whose definitive numbers and proportions are shown in the Table attached to Agreement No. B1526PTPRO2500195 (hereinafter referred to as "the Underwriters"). The Underwriters shall be liable hereunder each for his own part and not one for another in proportion to the several sums that each of them has subscribed to the said Agreement.
In any action to enforce the obligations of the Underwriters they can be designated or named as "Lloyd's Underwriters'' and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney In Fact in Canada for Lloyd's Underwriters, whose address for such service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51, Toronto, Ontario, M5J 2J2. In addition Quebec Legal proceedings may be served to: c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montréal, Québec H3B 4N8.
NOTICE

Any notice to the Underwriters may be validly given to the Coverholder.

In witness whereof this policy has been signed as authorized by the Underwriters, by Linx Underwriting Solutions Inc.



Per
The Insured is requested to read this policy, and if incorrect, return it immediately for alteration.
In the event of an occurrence likely to result in a claim under this insurance, immediate notice should be given to the Coverholder whose name and address appears above. All inquiries and disputes are also to be addressed to this Coverholder.
For the purpose of the Insurance Companies Act (Canada), this Canadian Policy was issued in the course of Lloyd's Underwriters' insurance business in Canada.

10/20

LSW1548D

CODE OF CONSUMER RIGHTS AND RESPONSIBILITIES

Insurers (including Lloyd's Underwriters), along with the brokers and agents who sell home, auto and business insurance are committed to safeguarding your rights both when you shop for insurance and when you submit a claim following a loss. Your rights include the right to be informed fully, to be treated fairly, to timely complaint resolution, and to privacy. These rights are grounded in the contract between you and your insurer and the insurance laws of your province. With rights, however, come responsibilities including, for example, the expectation that you will provide complete and accurate information to your insurer. Your policy outlines other important responsibilities. Insurers and their distribution networks, and governments also have important roles to play in ensuring that your rights are protected.

RIGHT TO BE INFORMED

You can expect to access clear information about your policy, your coverage, and the claims settlement process. You have the right to an easy-to-understand explanation of how insurance works and how it will meet your needs. You also have a right to know how insurers calculate price based on relevant facts. Under normal circumstances, insurers will advise an insurance customer or the customer's intermediary of changes to, or the cancellation of a policy within a reasonable prescribed period prior to the expiration of the

policy, if the customer provides information required for determining renewal terms of the policy within the time prescribed, which could vary by province, but is usually 45 days prior to expiry of the policy.

You have the right to ask who is providing compensation to your broker or agent for the sale of your insurance. Your broker or agent will provide information detailing for you how he or she is paid, by whom, and in what ways.

You have a right to be told about insurers' compensation arrangements with their distribution networks. You have a right to ask the broker or agent with whom you deal for details of how and by whom it is being paid. Brokers and agents are committed to providing information relating to ownership, financing, and other relevant facts.

RESPONSIBILITY TO ASK QUESTIONS AND SHARE INFORMATION

To safeguard your right to purchase appropriate coverage at a competitive price, you should ask questions about your policy so that you understand what it covers and what your obligations are under it. You can access information through one-on-one meetings with your broker or agent. You have the option to shop the marketplace for the combination of coverages and service levels that best suits your insurance needs. To maintain your protection against loss, you must promptly inform your broker or agent of any change in your circumstances.

RIGHT TO COMPLAINT RESOLUTION

Insurers, their brokers and agents are committed to high standards of customer service. If you have a complaint about the service you have received, you have a right to access Lloyd's Underwriters' complaint resolution process for Canada. Your agent or broker can provide you with information about how you can ensure that your complaint is heard and promptly handled. Consumers may also contact their respective provincial insurance regulator for information. Lloyd's is a member of an independent complaint resolution office, the General Insurance OmbudService.

RESPONSIBILITY TO RESOLVE DISPUTES

You should always enter into the dispute resolution process in good faith, provide required information in a timely manner, and remain open to recommendations made by independent observers as part of that process.

RIGHT TO PROFESSIONAL SERVICE

You have the right to deal with insurance professionals who exhibit a high ethical standard, which includes acting with honesty, integrity, fairness and skill. Brokers and agents must exhibit extensive knowledge of the product, its coverages and its limitations in order to best serve you.

RIGHT TO PRIVACY

Because it is important for you to disclose any and all information required by an insurer to provide the insurance coverage that best suits you, you have the right to know that your information will be used for the purpose set out in the privacy statement made available to you by your broker, agent or insurance representative. This information will not be disclosed to anyone except as permitted by law. You should know that Lloyd's Underwriters are subject to Canada's privacy laws - with respect to their business in Canada.

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LSW1565C

LLOYDS UNDERWRITERS POLICYHOLDERS COMPLAINT PROTOCOL

Lloyds strives to enhance your customer experience with us through superior service and innovative insurance products.
We have developed a formal complaint handling protocol in accordance with the Insurance Companies Act of Canada to ensure your concerns as our valued customer are addressed expeditiously by our representatives. This protocol will assist you in understanding the steps we will undertake to help resolve any dispute which may arise with our product or service. All complaints will be handled in a professional manner. All complaints will be investigated, acted upon, and responded to in writing or by telephone by a Lloyds representative promptly after the receipt of the complaint. If you are not satisfied with our products or services, you can take the following steps to address the issue:

- Firstly, please contact the broker who arranged the insurance on your behalf about your concerns so that he or she may have the opportunity to help resolve the situation.

- If your broker is unable to help resolve your concerns, we ask that you provide us in writing an outline of your complaint along with the name of your broker and your policy number.

Please forward your complaint to:

Lloyds Underwriters
Attention: Complaints Officer:
Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51, Toronto, Ontario, M5J 2J2
Tel: 1-877-455-6937 - Fax: (514) 861-0470
E-mail: info@lloyds.ca
Your complaint will be directed to the appropriate business contact for handling. They will write to you within two business days to acknowledge receipt of your complaint and to let you know when you can expect a full response. If need be, we will also engage internal staff in Lloyds Policyholder and Market Assistance Department in London, England, who will respond directly to you, and in the last stages, they will issue a final letter of position on your complaint.

In the event that your concerns are still not addressed to your satisfaction, you have the right to continue your pursuit to have your complaint reviewed by the following organizations:

General Insurance OmbudService (GIO): assists in the resolution of conflicts between insurance customers and their insurance companies. The GIO can be reached at:
Toll free number: 1-877-225-0446
www.giocanada.org
For Quebec clients:
Autorité des marchés financiers (AMF): The regulation of insurance companies in Quebec is administered by the AMF. If you remain dissatisfied with the manner in which your complaint has been handled, or with the results of the complaint protocol, you may send your complaint to the AMF who will study your file and who may recommend mediation, if it deems this action appropriate and if both parties agree to it. The AMF can be reached at
Toll Free: 1-877-525-0337
Québec: (418) 525-0337
Montréal: (514) 395-0311
www.lautorite.qc.ca
If you have a complaint specifically about Lloyds Underwriters complaints handling procedures you may contact the FCAC.

Financial Consumer Agency of Canada (FCAC) provides consumers with accurate and objective information about financial products and services, and informs Canadians of their rights and responsibilities when dealing with financial institutions. FCAC also ensures compliance with the federal consumer protection laws that apply to banks and federally incorporated trust, loan and insurance companies. The FCAC does not get involved in individual disputes. The FCAC can be reached at:

427 Laurier Avenue West, 6th Floor, Ottawa ON K1R 1B9
Services in English: 1-866-461-FCAC (3222)
Services in French: 1-866-461-ACFC (2232)
www.fcac-acfc.gc.ca

10/20

LSW1542F

RADIOACTIVE CONTAMINATION EXCLUSION CLAUSE-LIABILITY-DIRECT (U.S.A.)

For attachment (in addition to the appropriate Nuclear Incident Exclusion Clause-Liability-Direct) to liability insurances affording worldwide coverage.

In relation to liability arising outside the U.S.A., its Territories or Possessions, Puerto Rico or the Canal Zone, this Policy does not cover any liability of whatsoever nature directly or indirectly caused by or contributed to by or arising from ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel.

NMA1477

13/02/1964

NMA1477

STATUTORY CONDITIONS (BRITISH COLUMBIA)

MISREPRESENTATION

1. If a person applying for insurance falsely describes the property to the prejudice of the insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

PROPERTY OF OTHERS

2. The insurer is not liable for loss or damage to property owned by a person other than the insured unless

   (a) otherwise specifically stated in the contract, or

   (b) the interest of the insured in that property is stated in the contract.

CHANGE OF INTEREST

3. The insurer is liable for loss or damage occurring after an authorized assignment under the Bankruptcy and Insolvency Act (Canada) or a change of title by succession, by operation of law or by death.

MATERIAL CHANGE IN RISK

4. (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is

   (a) material to the risk, and

   (b) within the control and knowledge of the insured.

   (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.

   (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may

   (a) terminate the contract in accordance with Statutory Condition 5,

   or

   (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.

   (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3) (b) of this condition, the contract is terminated at that time and Statutory Condition 5 (2) (a) applies in respect of the unearned portion of the premium.

TERMINATION OF INSURANCE

5. (1) The contract may be terminated

   (a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or

   (b) by the insured at any time on request.

   (2) If the contract is terminated by the insurer,

   (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and

   (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.

(3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.

(4) The 15 day period referred to in subparagraph (1) (a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

REQUIREMENTS AFTER LOSS

6. (1) On the happening of any loss of or damage to insured property, the insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition 9,

(a) immediately give notice in writing to the insurer,

(b) deliver as soon as practicable to the insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration,

(i) giving a complete inventory of that property and showing in detail quantities and cost of that property and particulars of the amount of loss claimed,

(ii) stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the insured knows or believes,

(iii) stating that the loss did not occur through any wilful act or neglect or the procurement, means or connivance of the insured,

(iv) stating the amount of other insurances and the names of other insurers,

(v) stating the interest of the insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,

(vi) stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and

(vii) stating the place where the insured property was at the time of loss,

(c) if required by the insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and

(d) if required by the insurer and if practicable,

(i) produce books of account and inventory lists,

(ii) furnish invoices and other vouchers verified by statutory declaration, and

(iii) furnish a copy of the written portion of any other relevant contract.

(2) The evidence given, produced or furnished under subparagraph (1) (c) and (d) of this condition must not be considered proofs of loss within the meaning of Statutory Conditions 12 and 13.

FRAUD

7. Any fraud or wilfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition 6 invalidates the claim of the person who made the declaration.

WHO MAY GIVE NOTICE AND PROOF

8. Notice of loss under Statutory Condition 6 (1) (a) may be given and the proof of loss under Statutory Condition 6 (1) (b) may be made

(a) by the agent of the insured, if

(i) the insured is absent or unable to give the notice or make the proof, and

(ii) the absence or inability is satisfactorily accounted for, or

(b) by a person to whom any part of the insurance money is payable, if the insured refuses to do so or in the circumstances described in clause (a) of this condition.

SALVAGE

9. (1) In the event of loss or damage to insured property, the insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property.

(2) The insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the insured under subparagraph (1) of this condition.

ENTRY, CONTROL, ABANDONMENT

10. After loss or damage to insured property, the insurer has

(a) an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and

(b) after the insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but

(i) without the insured's consent, the insurer is not entitled to the control or possession of the insured property, and

(ii) without the insurer's consent, there can be no abandonment to it of the insured property.

IN CASE OF DISAGREEMENT

11. (1) In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must be determined using the applicable dispute resolution process set out in the Insurance Act, whether or not the insured's right to recover under the contract is disputed, and independently of all other questions.

(2) There is no right to a dispute resolution process under this condition until

(a) a specific demand is made for it in writing, and

(b) the proof of loss has been delivered to the insurer.

WHEN LOSS PAYABLE

12. Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition 6 and delivered to the insurer.

REPAIR OR REPLACEMENT

13. (1) Unless a dispute resolution process has been initiated, the insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.

(2) If the insurer gives notice under subparagraph (1) of this condition, the insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss, and must proceed with all due diligence to complete the work within a reasonable time.

NOTICE

14. (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.

(2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

01/07/12

LSW1815

STATUTORY CONDITION (ALBERTA)

MISREPRESENTATION

1. If a person applying for insurance falsely describes the property to the prejudice of the insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

PROPERTY OF OTHERS

2. The insurer is not liable for loss or damage to property owned by a person other than the insured unless

(a) otherwise specifically stated in the contract, or

(b) the interest of the insured in that property is stated in the contract.

CHANGE OF INTEREST

3. The insurer is liable for loss or damage occurring after an authorized assignment under the Bankruptcy and Insolvency Act (Canada) or a change of title by succession, by operation of law or by death.

MATERIAL CHANGE IN RISK

4. (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is

(a) material to the risk, and

(b) within the control and knowledge of the insured.

(2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.

(3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may

(a) terminate the contract in accordance with Statutory Condition 5,

or

(b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.

(4) If the insured fails to pay an additional premium when required to do so under subparagraph (3) (b) of this condition, the contract is terminated at that time and Statutory Condition 5 (2) (a) applies in respect of the unearned portion of the premium.

TERMINATION OF INSURANCE

5. (1) The contract may be terminated

(a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or

(b) by the insured at any time on request.

(2) If the contract is terminated by the insurer,

(a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and

(b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.

(3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.

(4) The 15 day period referred to in subparagraph (1) (a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

REQUIREMENTS AFTER LOSS

6. (1) On the happening of any loss of or damage to insured property, the insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition 9,

(a) immediately give notice in writing to the insurer,

(b) deliver as soon as practicable to the insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration,

(i) giving a complete inventory of that property and showing in detail quantities and cost of that property and particulars of the amount of loss claimed,

(ii) stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the insured knows or believes,

(iii) stating that the loss did not occur through any wilful act or neglect or the procurement, means or connivance of the insured,

(iv) stating the amount of other insurances and the names of other insurers,

(v) stating the interest of the insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,

(vi) stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and

(vii) stating the place where the insured property was at the time of loss,

(c) if required by the insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and

(d) if required by the insurer and if practicable,

(i) produce books of account and inventory lists,

(ii) furnish invoices and other vouchers verified by statutory declaration, and

(iii) furnish a copy of the written portion of any other relevant contract.

(2) The evidence given, produced or furnished under subparagraph (1) (c) and (d) of this condition must not be considered proofs of loss within the meaning of Statutory Conditions 12 and 13.

FRAUD

7. Any fraud or wilfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition 6 invalidates the claim of the person who made the declaration.

WHO MAY GIVE NOTICE AND PROOF

8. Notice of loss under Statutory Condition 6 (1) (a) may be given and the proof of loss under Statutory Condition 6 (1) (b) may be made

   (a) by the agent of the insured, if

      (i) the insured is absent or unable to give the notice or make the proof, and

      (ii) the absence or inability is satisfactorily accounted for, or

   (b) by a person to whom any part of the insurance money is payable, if the insured refuses to do so or in the circumstances described in clause (a) of this condition.

SALVAGE

9. (1) In the event of loss or damage to insured property, the insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property.

   (2) The insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the insured under subparagraph (1) of this condition.

ENTRY, CONTROL, ABANDONMENT

10. After loss or damage to insured property, the insurer has

   (a) an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and

   (b) after the insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but

      (i) without the insured's consent, the insurer is not entitled to the control or possession of the insured property, and

      (ii) without the insurer's consent, there can be no abandonment to it of the insured property.

In case of disagreement

11. (1) In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must be determined using the applicable dispute resolution process set out in the Insurance Act, whether or not the insured's right to recover under the contract is disputed, and independently of all other questions.

   (2) There is no right to a dispute resolution process under this condition until

      (a) a specific demand is made for it in writing, and

      (b) the proof of loss has been delivered to the insurer.

WHEN LOSS PAYABLE

12. Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition 6 and delivered to the insurer.

REPAIR OR REPLACEMENT

13. (1) Unless a dispute resolution process has been initiated, the insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.

(2) If the insurer gives notice under subparagraph (1) of this condition, the insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss, and must proceed with all due diligence to complete the work within a reasonable time.

NOTICE

14. (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.

(2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

01/07/12

LSW1814

STATUTORY CONDITIONS (MANITOBA)

MISREPRESENTATION

1. If a person applying for insurance falsely describes the property to the prejudice of the insurer, or misrepresents or fraudulently omits to communicate any circumstance that is material to be made known to the insurer in order to enable it to judge the risk to be undertaken, the contract is void as to any property in relation to which the misrepresentation or omission is material.

PROPERTY OF OTHERS

2. The insurer is not liable for loss or damage to property owned by a person other than the insured unless

(a) otherwise specifically stated in the contract, or

(b) the interest of the insured in that property is stated in the contract.

CHANGE OF INTEREST

3. The insurer is liable for loss or damage occurring after an authorized assignment under the Bankruptcy and Insolvency Act (Canada) or a change of title by succession, by operation of law or by death.

MATERIAL CHANGE IN RISK

4. (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is

(a) material to the risk, and

(b) within the control and knowledge of the insured.

(2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.

(3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may

(a) terminate the contract in accordance with Statutory Condition 5,

or

(b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.

(4) If the insured fails to pay an additional premium when required to do so under subparagraph (3) (b) of this condition, the contract is terminated at that time and Statutory Condition 5 (2) (a) applies in respect of the unearned portion of the premium.

TERMINATION OF CONTRACT

5. (1) The contract may be terminated

(a) by the insurer giving to the insured 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or

(b) by the insured at any time on request.

(2) If the contract is terminated by the insurer,

(a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and

(b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.

(3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.

(4) The 15-day period referred to in subparagraph (1) (a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

REQUIREMENTS AFTER LOSS

6. (1) On the happening of any loss or damage to insured property, the insured must, if the loss or damage is covered by the contract, in addition to observing the requirements of Statutory Condition 9,

(a) immediately give notice in writing to the insurer,

(b) deliver as soon as practicable to the insurer a proof of loss in respect of the loss or damage to the insured property verified by statutory declaration

(i) giving a complete inventory of that property and showing in detail quantities and costs of that property and particulars of the amount of loss claimed,

(ii) stating when and how the loss occurred, and if caused by fire or explosion due to ignition, how the fire or explosion originated, so far as the insured knows or believes,

(iii) stating that the loss did not occur through any wilful act or neglect or the procurement, means or connivance of the insured,

(iv) stating the amount of other insurances and the names of other insurers,

(v) stating the interest of the insured and of all others in that property with particulars of all liens, encumbrances and other charges on that property,

(vi) stating any changes in title, use, occupation, location, possession or exposure of the property since the contract was issued, and

(vii) stating the place where the insured property was at the time of loss,

(c) if required by the insurer, give a complete inventory of undamaged property showing in detail quantities and cost of that property, and

(d) if required by the insurer and if practicable,

(i) produce books of account and inventory lists,

(ii) furnish invoices and other vouchers verified by statutory declaration, and

(iii) furnish a copy of the written portion of any other relevant contract.

(2) The evidence given, produced or furnished under subparagraph (1) (c) and (d) of this condition must not be considered proofs of loss within the meaning of Statutory Conditions 12 and 13.

FRAUD

7. Any fraud or wilfully false statement in a statutory declaration in relation to the particulars required under Statutory Condition 6 invalidates the claim of the person who made the declaration.

WHO MAY GIVE NOTICE AND PROOF

8. Notice of loss under Statutory Condition 6 (1) (a) may be given and the proof of loss under of Statutory Condition 6 (1) (b) may be made

(a) by the agent of the insured if

(i) the insured is absent or unable to give the notice or make the proof, and

(ii) the absence or inability is satisfactorily accounted for, or

(b) by a person to whom any part of the insurance money is payable, if the insured refuses to do so, or in the circumstances described in clause (a) of this condition.

SALVAGE

9. (1) In the event of loss or damage to insured property, the insured must take all reasonable steps to prevent further loss or damage to that property and to prevent loss or damage to other property insured under the contract, including, if necessary, removing the property to prevent loss or damage or further loss or damage to the property.

(2) The insurer must contribute on a prorated basis towards any reasonable and proper expenses in connection with steps taken by the insured under subparagraph (1) of this condition.

ENTRY, CONTROL, ABANDONMENT

10. After loss or damage to insured property, the insurer has

(a) an immediate right of access and entry by accredited representatives sufficient to enable them to survey and examine the property, and to make an estimate of the loss or damage, and

(b) after the insured has secured the property, a further right of access and entry by accredited representatives sufficient to enable them to appraise or estimate the loss or damage, but

(i) without the insured's consent, the insurer is not entitled to the control or possession of the insured property, and

(ii) without the insurer's consent, there can be no abandonment to it of the insured property.

IN CASE OF DISAGREEMENT

11. (1) In the event of disagreement as to the value of the insured property, the value of the property saved, the nature and extent of the repairs or replacements required or, if made, their adequacy, or the amount of the loss or damage, those questions must

be determined using the applicable dispute resolution process set out in the Insurance Act whether or not the insured's right to recover under the contract is disputed, and independently of all other questions.

(2) There is no right to a dispute resolution process under this condition until

(a) a specific demand is made for it in writing, and

(b) the proof of loss has been delivered to the insurer.

WHEN LOSS PAYABLE

12. Unless the contract provides for a shorter period, the loss is payable within 60 days after the proof of loss is completed in accordance with Statutory Condition 6 and delivered to the insurer.

REPLACEMENT

13. (1) Unless a dispute resolution process has been initiated, the insurer, instead of making payment, may repair, rebuild or replace the insured property lost or damaged, on giving written notice of its intention to do so within 30 days after receiving the proof of loss.

(2) If the insurer gives notice under subparagraph (1) of this condition, the insurer must begin to repair, rebuild or replace the property within 45 days after receiving the proof of loss and must proceed with all due diligence to complete the work within a reasonable time.

NOTICE

14. (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.

(2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to the insured's last known address as provided to the insurer by the insured.

17/10/14

LSW1851

QUEBEC AMENDATORY ENDORSEMENT

QUEBEC CIVIL CODE AMENDMENT
(from CICC077 12-03)

Where this policy is required to be interpreted by the law of the Province of Quebec then the policy provisions shall be deemed to be amended to comply with the applicable provisions of the Quebec Civil Code, but only to the extent necessary to comply with requirements of the Quebec Civil Code and only to the extent that the Quebec Civil Code in law governs this contract.

Every action or proceeding against an insurer for the recovery of insurance money payable under the contract is absolutely barred unless commenced within the time set out in the Quebec Civil Code.

LINXL001

ENGLISH LANGUAGE CLAUSE

The Named Insured, for itself and all Insureds, consents to this Policy and all notices required hereunder being drafted and delivered in the English language

L' assure, en son nom propre et au nom de tous les assures, consent expressement a ce que le present contrat et tous les avis exiges par les presentes soient rediges et transmis en anglais.

LINXL002

CANCELLATION OF POLICY

POLICY NUMBER: _____

If you wish to cancel this Policy, please sign the following and return this document to your broker/agent. In consideration of a RETURN PREMIUM to be calculated as provided in the policy conditions and to be paid by the Insurer(s) to the Insured, this Policy is hereby cancelled.

Payee: _____

Date: _____

Signature of Insured: _____

Signature of Payee (if applicable): _____

LINXL003

SHORT RATE CANCELLATION TABLE ENDORSEMENT

NOTWITHSTANDING anything to the contrary contained herein and in consideration of the premium for which this insurance is written, it is agreed that in the event of cancellation thereof by the Assured the earned premium shall be computed as follows:

Short Rate Cancellation Table

A. For insurance written for one year:

Days Insurance in force	Percent of One Year Premium	Days Insurance in force	Percent of One Year Premium	Days Insurance in force	Percent of One Year Premium
0-1	5	95 - 98	37	219 - 223	69
2	6	99 - 102	38	224 - 228	70
3 - 4	7	103 - 105	39	229 - 232	71
5 - 6	8	106 - 109	40	233 - 237	72
7 - 8	9	110 - 113	41	238 - 241	73
9 - 10	10	114 - 116	42	242 - 246 (8 mos)	74
11 - 12	11	117 - 120	43	247 - 250	75
13 - 14	12	121 - 124(4 mos)	44	251 - 255	76
15 - 16	13	125 - 127	45	256 - 260	77
17 - 18	14	128 - 131	46	261 - 264	78
19 - 20	15	132 - 135	47	265 - 269	79
21 - 22	16	136 - 138	48	270 - 273(9 mos)	80
23 - 25	17	139 - 142	49	274 - 278	81
26 - 29	18	143 - 146	50	279 - 282	82
30 - 32 (1 mo)	19	147 - 149	51	283 - 287	83
33 - 36	20	150 - 153 (5 mos)	52	288 - 291	84
37 - 40	21	154 - 156	53	292 - 296	85
41 - 43	22	157 - 160	54	297 - 301	86
44 - 47	23	161 - 164	55	302 - 305(10 mos)	87
48 - 51	24	165 - 167	56	306 - 310	88
52 - 54	25	168 - 171	57	311 - 314	89
55 - 58	26	172 - 175	58	315 - 319	90
59 - 62 (2 mos)	27	176 - 178	59	320 - 323	91
63 - 65	28	179 - 182(6 mos)	60	324 - 328	92
66 - 69	29	183 - 187	61	329 - 332	93
70 - 73	30	188 - 191	62	333 - 337(11 mos)	94
74 - 76	31	192 - 196	63	338 - 342	95
77 - 80	32	197 - 200	64	343 - 346	96
81 - 83	33	201 - 205	65	347 - 351	97
84 - 87	34	206 - 209	66	352 - 355	98
88 - 91 (3 mos)	35	210 - 214(7 mos)	67	356 - 360	99
92 - 94	36	215 - 218	68	361 - 366	100

B. For insurance written for more or less than one year:

1. If insurance has been in force for 12 months or less, apply the standard short rate table for annual insurances to the full annual premium determined as for an insurance written for a term of one year.
2. If insurance has been in force for more than 12 months:
   a. Determine full annual premium as for an insurance written for a term of one year.

b. Deduct such premium from the full insurance premium, and on the remainder calculate the pro rata earned premium on the basis of the ratio of the length of time beyond one year the insurance has been in force to the length of time beyond one year for which the insurance was originally written.

c. Add premium produced in accordance with terms (a) and (b) to obtain earned premium during full period insurance has been in force.

LINXL004

COMMERCIAL GENERAL LIABILITY POLICY

Throughout this Policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under Paragraph 3. of Section II – Who is an Insured. The words "we", "us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under Section II – Who Is an Insured. Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions. Various provisions in this Policy restrict coverage. Read the entire Policy carefully to determine rights, duties and what is and is not covered.

SECTION I – COVERAGES

COVERAGE A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. INSURING AGREEMENT

(a) We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "action" that may result. But:

(i) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and

(ii) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A, B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A, B and D.

(b) This insurance applies to "bodily injury" and "property damage" only if:

(i) the "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory"; and

(ii) the "bodily injury" or "property damage" occurs during the policy period; and

(iii) prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

(c) "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

(d) "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1 of Section II – Who Is an Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

(i) reports all or any part, of the "bodily injury" or "property damage" to us or any other insurer;

(ii) receives a written or verbal demand or claim for "compensatory damages" because of the "bodily injury" or "property damage"; or

(iii) becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

(e) "Compensatory damages" because of "bodily injury" include "compensatory damages" claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

2. EXCLUSIONS

This insurance does not apply to:

A. EXPECTED OR INTENDED INJURY OR DAMAGE

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" or “property damage” resulting from the use of reasonable force to protect persons or property nor to any insured who neither sanctioned nor was a party to the causing of the “bodily injury” or “property damage”.

B. CONTRACTUAL LIABILITY

“Bodily injury” or “property damage” for which the Insured is obligated to pay “compensatory damages” by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for “compensatory damages”:

(a) assumed in a contract or agreement that is an “insured contract”; or

(b) that the Insured would have in the absence of the contract or agreement.

C. WORKERS' COMPENSATION AND SIMILAR LAWS

Any obligation of the Insured under a workers compensation, disability benefits or unemployment compensation law or any similar law, except that this exclusion shall not apply to claims arising out of the legal liability imposed upon the Insured at common law, or as extended by statute, for injuries to employees of the Insured, nor shall this exclusion apply to claims arising out of any liability assumed by the Insured under contract.

D. EMPLOYERS’ LIABILITY

"Bodily injury" to:

(a) An “employee” of the insured resident in the United States of America arising out of and in the course of:
- (i) Employment by the insured; or
- (ii) Performing duties related to the conduct of the insured's business.

This exclusion applies:
- (i) Whether the insured may be liable as an employer or in any other capacity; and
- (ii) To any obligation to share "compensatory damages" with or repay someone else who must pay "compensatory damages" because of the injury.

This exclusion does not apply to:
- (i) Liability assumed by the insured under an "insured contract"; or
- (ii) a claim made or an “action” brought by a Canadian resident “employee” on whose behalf contributions are made by or required to be made by you under the provisions of any Canadian provincial or territorial workers’ compensation law, if cover or benefits have been denied by any Canadian Workers’ Compensation Authority.

(b) “Bodily injury to an “employee” of the insured while employed in violation of the law with your actual knowledge or the actual knowledge of any of your “executive officers”.

E. AIRCRAFT OR WATERCRAFT

- (i) "Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others by or on behalf of any insured of any aircraft, air cushion vehicle or watercraft; or
- (ii) "Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others by or on behalf of any insured of any premises for the purpose of an airport or aircraft landing area and all operations necessary or incidental thereto.

Use includes operation and "loading or unloading.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft or watercraft.

This exclusion does not apply to:

- (i) a watercraft while ashore on premises you own or rent;
- (ii) a watercraft that is:
  - a) less than 10 meters long; and
  - b) not being used to carry persons or property for a charge.

(iii) "bodily injury" to an "employee" of the insured arising out of and in the course of employment by the insured or performing duties related to the conduct of the insured's business, if the "bodily injury" results from an "occurrence" involving watercraft.

F. AUTOMOBILE

"Bodily injury" or "property damage" arising directly or indirectly, in whole or in part, out of the ownership, use or entrustment to others by or on behalf of the insured of any "automobile". Use includes operation. This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury" or "property damage".
This exclusion also applies to:

(a) any motorized snow vehicle or its trailers falling within the definition of "automobile"; and

(b) any vehicle while being used in any speed or demolition contest or in any stunting activity or in practice or preparation for any such contest or activity whether or not it is required by law to be insured under a contract evidenced by a motor vehicle liability policy.

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, use or entrustment to others of any "automobile".

This exclusion does not apply to:

(a) "bodily injury" to a Canadian resident "employee" of the insured arising out of and in the course of employment by the insured or performing duties related to the conduct of the insured's business;

(b) "bodily injury" or "property damage" arising out of a defective condition in, or improper maintenance of, any "automobile" owned by the Insured while leased to others for a period of 30 days or more provided the lessee is obligated under contract to ensure that the "automobile" is insured; and

(c) the ownership, use or operation of machinery, apparatus or equipment mounted on or attached to any vehicle while at the site of the use or operation of such equipment, but this exception does not apply when such equipment is used for the purpose of “loading or unloading”.

G. DAMAGE TO PROPERTY

"Property damage" to:

(a) property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property;

(b) premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;

(c) property loaned to you;

(d) personal property in your care, custody or control;

(e) that particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or

(f) that particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraph (b) of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.
Paragraphs (c), (d), (e) and (f) of this exclusion do not apply to liability assumed under a sidetrack agreement.
Paragraph (f) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

H. DAMAGE TO YOUR PRODUCT

"Property damage" to "your product" arising out of it or any part of it.

I. DAMAGE TO YOUR WORK

"Property damage" to that particular part of "your work" out of which any “property damage” arises and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

J. DAMAGE TO IMPAIRED PROPERTY OR PROPERTY NOT PHYSICALLY INJURED

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

(a) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or

(b) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

K. RECALL OF PRODUCTS, WORK OR IMPAIRED PROPERTY

"Compensatory damages" claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

(a) "your product";
(b) "your work"; or
(c) "impaired property"

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

L. ELECTRONIC DATA

"Compensatory damages" arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate "electronic data".

M. PERSONAL AND ADVERTISING INJURY

"Bodily injury" arising out of "personal and advertising injury"

N. PROFESSIONAL SERVICES

"Bodily injury" (other than for incidental medical malpractice injury"), or "property damage" due to an error, omission, malpractice or mistake committed by you or on your behalf in rendering or failing to render "professional services" for others.

O. ABUSE

"Bodily Injury" arising out of Abuse. For the purpose of the Exclusion "Abuse" shall mean any physical, sexual, psychological and or other harmful, willful and or deliberate behavior likely to lead to "Bodily Injury".

P. ASBESTOS

See Common Exclusions.

Q. FUNGI OR SPORES

See Common Exclusions.

R. NUCLEAR

See Common Exclusions.

S. POLLUTION

See Common Exclusions.

T. TERRORISM

See Common Exclusions.

U. WAR RISKS

See Common Exclusions.

COVERAGE B. PERSONAL AND ADVERTISING INJURY LIABILITY

1. INSURING AGREEMENT

(a) We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "action" that may result. But:

(i) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and

(ii) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A, B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A, B and D.

(b) This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

2. EXCLUSIONS

This insurance does not apply to:

(a) Knowing Violation of Rights of Another

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury"

(b) Material Published with Knowledge of Falsity

"Personal and advertising injury" arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.

(c) Material Published Prior To Policy Period

"Personal and advertising injury" arising out of oral or written publication of material whose first publication took place before the beginning of the policy period.

(d) Criminal Acts

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

(e) Contractual Liability

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for "compensatory damages" that the insured would have in the absence of the contract or agreement.

(f) Breach of Contract

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

(g) Quality or Performance of Goods – Failure to Conform to Statements

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

(h) Wrong Description of Prices

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

(i) Infringement of Copyright, Patent, Trademark or Trade Secret

"Personal and advertising injury" arising out of the infringement of registered trade mark, service mark, or trade name by use thereof as the registered trade mark, service mark, or trade name of goods or services sold, offered for sale or advertised, but this shall not relate to tales or slogans.
However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

(j) Insureds in Media and Internet Type Businesses

"Personal and advertising injury" committed by an insured whose business is:
(i) Advertising, broadcasting, publishing or telecasting;
(ii) Designing or determining content of web-sites for others; or
(iii) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs 21. (a), (b). and (c). of "personal and advertising injury" under the Definitions section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

(k) Electronic Chatrooms or Bulletin Boards

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

(l) Unauthorized Use of Another's Name or Product

"Personal and advertising injury" arising out of a known and intended unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

(m) Asbestos

See Common Exclusions.

(n) Fungi or Spores

See Common Exclusions.

(o) Nuclear

See Common Exclusions.

(p) Pollution

See Common Exclusions.

(q) Terrorism

See Common Exclusions.

(r) War Risks

See Common Exclusions.

COVERAGE C. MEDICAL PAYMENTS

1. INSURING AGREEMENT

(a) We will pay medical expenses as described below for "bodily injury" caused by an accident:
(i) on premises you own or rent;
(ii) on ways next to premises you own or rent; or
(iii) because of your operations;

provided that:

(i) the accident takes place in the "coverage territory" and during the policy period;
(ii) the expenses are incurred and reported to us within one year of the date of the accident; and
(iii) the injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

(b) We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance as described in Section III – Limits of Insurance. We will pay reasonable expenses for:
(i) First aid administered at the time of an accident;
(ii) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
(iii) Necessary ambulance, hospital, professional nursing and funeral services.

2. EXCLUSIONS

We will not pay expenses for "bodily injury":

(a) Any Insured

To any insured, except "volunteer workers".

(b) Hired Person

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

(c) Injury on Normally Occupied Premises

To a person injured on that part of premises you own or rent that the person normally occupies.

(d) Workers' Compensation and Similar Laws

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

(e) Products-Completed Operations Hazard

Included within the "products-completed operations hazard".

(f) Coverage A Exclusions

Excluded under Coverage A.

COVERAGE D. TENANTS' LEGAL LIABILITY

1. INSURING AGREEMENT

(a) We will pay those sums that the insured becomes legally obligated to pay as "compensatory damages" because of "property damage" to which this insurance applies. This insurance applies only to "property damage" to premises of others rented to you or occupied by you. We will have the right and duty to defend the insured against any "action" seeking those "compensatory damages". However, we will have no duty to defend the insured against any "action" seeking "compensatory damages" for "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "action" that may result. But:
(i) The amount we will pay for "compensatory damages" is limited as described in Section III – Limits Of Insurance; and

(ii) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverage D.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A, B and D.

(b) This insurance applies to "property damage" only if:

(i) The "property damage" is caused by an "occurrence" that takes place in the "coverage territory";

(ii) The "property damage" occurs during the policy period; and

(iii) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period that the "property damage" occurred, then any continuation, change or resumption of such "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

(c) "Property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "property damage" after the end of the policy period.

(d) "Property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

(i) Reports all, or any part, of the "property damage" to us or any other insurer;

(ii) Receives a written or verbal demand or claim for "compensatory damages" because of the "property damage"; or

(iii) Becomes aware by any other means that "property damage" has occurred or has begun to occur.

2. EXCLUSIONS

This insurance does not apply to:

(a) Expected or Intended Damage

"Property damage" expected or intended from the standpoint of the insured.

(b) Contractual Liability

"Property damage" for which the insured is obligated to pay "compensatory damages" by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for "compensatory damages" that the insured would have in the absence of the contract or agreement.

(c) Asbestos

See Common Exclusions.

(d) Fungi or Spores – see Common Exclusions

See Common Exclusions.

(e) Nuclear– see Common Exclusions

See Common Exclusions.

(f) Pollution – see Common Exclusions

See Common Exclusions.

(g) Terrorism – see Common Exclusions

See Common Exclusions.

(h) War Risks – see Common Exclusions

See Common Exclusions.

COMMON EXCLUSIONS – COVERAGES A, B, C AND D

This insurance does not apply to:

1. ASBESTOS

"Bodily injury", "property damage", or "personal and advertising injury" related to or arising from any actual or alleged liability for any legal remedy of any kind whatsoever (including but not limited to damages, interest, mandatory or other injunctive relief, statutory orders or penalties, legal or other costs, or expenses of any kind) in respect of actual or threatened loss, damage, cost or expense directly or indirectly caused by, resulting from, in consequence of or in any way involving, asbestos or any materials containing asbestos in whatever form or quantity, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of asbestos or any materials containing asbestos in whatever form or quantity.
This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

2. FUNGI OR SPORES

(a) "Bodily injury", "property damage", "personal and advertising injury" or any other cost, loss or expense incurred by others, arising directly or indirectly from the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, presence of, spread of, reproduction, discharge or other growth of any "fungi" or "spores" however caused, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of "fungi" or "spores";

(b) Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with (a) above; or

(c) Any obligation to pay damages, share damages with or repay someone else who must pay damages because of such injury or damage referred to in (a) or (b) above.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

This exclusion shall not apply to "bodily injury" or "property damage" which results directly from a "products-completed operations hazard" not otherwise excluded by this Policy;

The most we will pay under this exception for all "bodily injury" and "property damage" in any policy period is $250,000.
The Limit of Insurance provided by this exception shall be included in and is not in addition to any other Limits of Insurance provided for "bodily injury" or "property damage" under this Policy.

3. NUCLEAR ENERGY LIABILITY

(a) Liability imposed by or arising from any nuclear liability act, law or statute, or any law amendatory thereof;

(b) "Bodily injury", "property damage" or "personal and advertising injury" with respect to which an insured under this Policy is also insured under a contract of nuclear energy liability insurance (whether the insured is unnamed in such contract and whether or not it is legally enforceable by the insured) issued by the Nuclear Insurance Association of Canada or any other insurer or group or pool of insurers or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability;

(c) "Bodily injury", "property damage" or "personal and advertising injury" resulting directly or indirectly from the "nuclear energy hazard" arising from:
- (i) The ownership, maintenance, operation or use of a "nuclear facility" by or on behalf of an insured;
- (ii) the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility";
- (iii) the possession, consumption, use, handling, disposal or transportation of "fissionable substances", or of other "radioactive material" (except radioactive isotopes, away from a nuclear facility, which have reached the final stage of fabrication so as to be useable for any scientific, medical, agricultural, commercial or industrial purpose) used, distributed, handled or sold by an insured.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury.

4. POLLUTION

1. "Bodily injury", "property damage" or "personal and advertising injury" arising out of the actual, alleged or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "pollutants":

   (a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:
   - (i) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapour or soot from equipment used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;
   - (ii) "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
   - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";

   (b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;

   (c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
   - (i) Any insured; or
   - (ii) Any person or organization for whom you may be legally responsible;

   (d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:

   - (i) "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of mobile equipment that is not an "automobile" or its parts, if such fuels, lubricants or other operating fluids escape from a mobile equipment part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
   - (ii) "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapours from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or
   - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".

   (e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

2. Any loss, cost or expense arising out of any:
   (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

   (b) Claim or "action" by or on behalf of a governmental authority for "compensatory damages" because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

   However, this Section 2. does not apply to liability for "compensatory damages" because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "action" by or on behalf of a governmental authority.

5. TERRORISM

"Bodily injury", "property damage" or "personal and advertising injury" arising directly or indirectly, in whole or in part, out of "terrorism" or out of any activity or decision of a government agency or other entity to prevent, respond to or terminate "terrorism". This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

6. WAR RISKS

"Bodily injury", "property damage" or "personal and advertising injury" arising directly or indirectly, in whole or in part, out of war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military power. This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "bodily injury", "property damage" or "personal and advertising injury".

SUPPLEMENTARY PAYMENTS – COVERAGES A, B AND D

1. We will pay, with respect to any claim we investigate or settle, or any "action" against an insured we defend:
   (a) All expenses we incur;

   (b) The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds;

   (c) All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "action", including actual loss of earnings up to $250 a day because of time off from work;

   (d) All costs assessed or awarded against the insured in the "action";

   (e) Any interest accruing after entry of judgment upon that part of the judgment which is within the applicable limit of insurance and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

   These payments will not reduce the limits of insurance.

2. If we defend an insured against an "action" and an indemnitee of the insured is also named as a party to the "action", we will defend that indemnitee if all of the following conditions are met:

   (a) The "action" against the indemnitee seeks "compensatory damages" for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";

   (b) This insurance applies to such liability assumed by the insured;

   (c) The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";

   (d) The allegations in the "action" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;

   (e) The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "action" and agree that we can assign the same counsel to defend the insured and the indemnitee; and

   (f) The indemnitee:
      (i) Agrees in writing to:
         a) Cooperate with us in the investigation, settlement or defense of the "action";
         b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "action";
         c) Notify any other insurer whose coverage is available to the indemnitee; and
         d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
      (ii) Provides us with written authorization to:
         a) Obtain records and other information related to the "action"; and
         b) Conduct and control the defense of the indemnitee in such "action".

   So long as the above conditions are met, legal fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Such payments will not be deemed to be "compensatory damages" for "bodily injury" and "property damage" and will not reduce the limits of insurance.

   Our obligation to defend an insured's indemnitee and to pay for legal fees and necessary litigation expenses as Supplementary Payments ends when:

   (a) We have used up the applicable limit of insurance in the payment of judgments or settlements; or

(b) The conditions set forth above, or the terms of the agreement described in Paragraph (f). above, are no longer met.

SECTION II – WHO IS AN INSURED

1. If you are designated in the Declarations as:

   (a) An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
   (b) A partnership, limited liability partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
   (c) A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
   (d) An organization other than a partnership, limited liability partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your shareholders are also insureds, but only with respect to their liability as shareholders.
   (e) A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:

   (a) Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, limited liability partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:
      (i) "Bodily injury" or "personal and advertising injury":
         a) To you, to your partners or members (if you are a partnership, limited liability partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;
         b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph (1) (a) above;
         c) For which there is any obligation to share "compensatory damages" with or repay someone else who must pay "compensatory damages" because of the injury described in Paragraphs 1(a) or (b) above;
         d) Arising out of his or her providing or failing to provide professional health care services; or
         e) To any person who at the time of injury is entitled to benefits under any workers' compensation or disability benefits law or a similar law.
      (ii) "Property damage" to property:
         a) Owned, occupied or used by;
         b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership, limited liability partnership or joint venture), or any member (if you are a limited liability company).

   (b) Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager;

   (c) Any person or organization having proper temporary custody of your property if you die, but only:
      (i) With respect to liability arising out of the maintenance or use of that property; and
      (ii) Until your legal representative has been appointed.

   (d) Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Policy;

   (e) Co-owners, joint ventures or partners, in their capacity as such, having a non-operating interest with you in operations insured hereunder, however this insurance does not apply to participants, other than you, of any partnership or joint venture agreement unless liability is assumed by you under any contract or agreement, or unless named as such on this Policy;
   (f) Each person, firm, corporation or government body for whom you have contracted to provide insurance is an insured but only with respect to liability arising out of operations performed by you or on your behalf, and only to the extent required by such contract.

3. Any organization you newly acquire or form, other than a partnership, limited liability partnership or joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

(a) Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

(b) Coverages A and D do not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

(c) Coverage B does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, limited liability partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

   (a) Insureds;
   (b) Claims made or "actions" brought; or
   (c) Persons or organizations making claims or bringing "actions".

2. The General Aggregate Limit, if shown on the Declaration Page, is the most we will pay for the sum of:

   (a) "Compensatory damages" under Coverage A, except "compensatory damages" because of "bodily injury" or "property damage" included in the "products-completed operations hazard";
   (b) "Compensatory damages" under Coverage B; and
   (c) Medical expenses under Coverage C.

3. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage A for "compensatory damages" because of "bodily injury" and "property damage" included in the "products-completed operations hazard".

4. Subject to 2. or 3. above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:
   (a) "Compensatory damages" under Coverage A; and
   (b) Medical expenses under Coverage C
   because of all "bodily injury" and "property damage" arising out of any one "occurrence".

5. Subject to 2. above, the Personal and Advertising Injury Limit is the most we will pay under Coverage B for the sum of all "compensatory damages" because of all "personal and advertising injury" sustained by any one person or organization.

6. The Tenants' Legal Liability Limit is the most we will pay under Coverage D for "compensatory damages" because of "property damage" to any one premises.

7. Subject to 4. above, the Medical Expense Limit is the most we will pay under Coverage C for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Policy apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

8. DEDUCTIBLE

1. Our obligation under Bodily Injury Liability, Property Damage Liability and Tenants' Legal Liability to pay "compensatory damages" on your behalf applies only to the amount of "compensatory damages" in excess of any deductible amounts stated in the Declarations as applicable to such coverages, and the limits of insurance applicable to each "occurrence" for Bodily Injury Liability and Property Damage Liability and any one premises for Tenants' Legal Liability will be reduced by the amount of such deductible. The Products -Completed Operations Aggregate Limit and the General Aggregate Limit (if shown on the Declaration Page) for such coverages shall not be reduced by the application of such deductible amount.

2. The deductible amounts stated in the Declarations apply as follows:

   (a) Per Claim Basis – if the deductible is on a per claim basis, the deductible amount applies:

(i) Under Coverage A:
a) Bodily Injury Liability or Property Damage Liability respectively:

(A) To all "compensatory damages" because of "bodily injury" sustained by one person; or
(B) To all "compensatory damages" because of "property damage" sustained by one person or organization, as the result of any one "occurrence".

b) Bodily Injury Liability and Property Damage Liability combined, to all "compensatory damages" because of "bodily injury" and "property damage" sustained by one person or organization as the result of any one "occurrence".

(ii) Under Coverage D. Tenants' Legal Liability, to all "compensatory damages" because of "property damage" sustained by one person or organization as the result of any one "occurrence".

(b) Per Occurrence Basis – if the deductible is on a per occurrence basis, the deductible amount applies:
(i) Under Coverage A:
a) Bodily Injury Liability or Property Damage Liability respectively:

(A) To all "compensatory damages" because of "bodily injury" as the result of any one "occurrence"; or
(B) To all "compensatory damages" because of "property damage" as the result of any one "occurrence";

regardless of the number of persons or organizations who sustain "compensatory damages" because of that "occurrence".

b) Bodily Injury Liability and Property Damage Liability combined, to all "compensatory damages" because of "bodily injury" and "property damage" as the result of any one "occurrence", regardless of the number of persons or organizations who sustain "compensatory damages" because of that "occurrence".

(ii) Under Coverage D. Tenants' Legal Liability, to all "compensatory damages" because of "property damage" as the result of any one "occurrence", regardless of the number of persons or organizations who sustain "compensatory damages" because of that "occurrence".

3. The terms of this insurance, including those with respect to:
a) our right and duty to defend any "action" seeking those "compensatory damages"; and
b) your duties in the event of an "occurrence", claim or "action"

apply irrespective of the application of the deductible amount.

4. We may pay any part or all of the deductible amount to effect settlement of any claim or "action" and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as has been paid by us.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. BANKRUPTCY

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Policy.

2. CANADIAN CURRENCY CLAUSE

All limits of insurance, premiums and other amounts as expressed in this Policy are in Canadian currency.

3. CHANGES

This Policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this Policy with our consent. This Policy's terms can be amended or waived only by endorsement issued by us and made a part of this Policy.

4. DUTIES IN THE EVENT OF OCCURRENCE, OFFENSE, CLAIM OR ACTION

1. You must see to it that we or Aon Reed Stenhouse Inc. are notified, as soon as practicable after notice has been received by your insurance department or insurance administrator at your address stated in the Declarations, of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:
(a) How, when and where the "occurrence" or offense took place;

(b) The names and addresses of any injured persons and witnesses; and
(c) The nature and location of any injury or damage arising out of the "occurrence" or offense.

2. If a claim is made or "action" is brought against any insured, you must:
(a) Immediately record the specifics of the claim or "action" and the date received; and
(b) Notify us as soon as practicable.
You must see to it that we receive written notice of the claim or "action" as soon as practicable.

3. You and any other involved insured must:
(a) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "action";
(b) Authorize us to obtain records and other information;
(c) Cooperate with us in the investigation or settlement of the claim or defense against the "action"; and
(d) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

4. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

5. EXAMINATION OF YOUR BOOKS AND RECORDS

We may examine and audit your books and records as they relate to this Policy at any time during the policy period and up to two years afterward.

6. INSPECTIONS AND SURVEYS

1. We have the right to:
(a) Make inspections and surveys at any time;
(b) Give you reports on the conditions we find; and
(c) Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
(a) Are safe or healthful; or
(b) Comply with laws, regulations, codes or standards.

3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under provincial or municipal statutes, ordinances, bylaws or regulations, of boilers, pressure vessels or elevators.

7. LEGAL ACTION AGAINST US

No person or organization has a right under this Policy:
(a) To join us as a party or otherwise bring us into an "action" asking for "compensatory damages" from an insured; or
(b) To sue us on this Policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for "compensatory damages" that are not payable under the terms of this Policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

8. OTHER INSURANCE

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages A, B or D of this Policy, our obligations are limited as follows:

(a) Primary Insurance
This insurance is primary except when (b) below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in (c) below.

(b) Excess Insurance

This insurance is excess over:

(i) Any of the other insurance, whether primary, excess, contingent or on any other basis:
  a) That is Property Insurance which also includes but is not limited to Builder's Risk, Installation Floater or similar coverage for "your work" or for premises of others rented to you or occupied by you;
  b) If the loss arises out of the maintenance or use of watercraft to the extent not subject to Exclusion E of Section I – Coverage A – Bodily Injury and Property Damage Liability.

(ii) Any other primary insurance available to you covering liability for "compensatory damages" arising out of the premises or operations or products-completed operations for which you have been added as an additional insured by attachment of an endorsement.

When this insurance is excess, we will have no duty under Coverages A, B or D to defend the insured against any "action" if any other insurer has a duty to defend the insured against that "action". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(i) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(ii) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Policy.

(c) Method of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

9. PREMIUM ADJUSTMENT

(a) We will compute all premiums for this Policy in accordance with our rules and rates.

(b) The Advance Liability Premium shown in the Declarations is a deposit premium only. At the end of each policy period we will compute the earned premium for that period. If such earned premium is greater than the liability premium initially charged, the first Named Insured shall pay the excess to us. If, however, the earned premium is less than the liability premium initially charged, we will return the excess to the first Named Insured subject to the retention of the minimum liability premium shown in the Declarations.

(c) The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

10. PREMIUMS

The first Named Insured shown in the Declarations:

(a) Is responsible for the payment of all premiums; and
(b) Will be the payee for any return premiums we pay.

11. REPRESENTATIONS OR FRAUD

By accepting this Policy, you agree:

(a) The statements in the Declarations are accurate and complete;
(b) Those statements are based upon representations you made to us;
(c) We have issued this Policy in reliance upon your representations; and
(d) This Policy is void in any case of fraud by you as it relates to this Policy or any claim under this Policy.

12. SEPARATION OF INSUREDS, CROSS LIABILITY

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Policy to the first Named Insured, this insurance applies:

(a) As if each Named Insured were the only Named Insured; and
(b) Separately to each insured against whom claim is made or "action" is brought.

Any breach of a condition of this Policy by any insured shall not affect the protection given by this Policy to any other insured.

13. TERMINATION

(a) The first Named Insured shown in the Declarations may terminate this Policy by mailing or delivering to us advance written notice of termination.

(b) Subject to paragraph (c) below, we may terminate this Policy by giving to the first Named Insured
  (i) 5 days written notice of termination personally delivered or 15 days notice of termination by registered mail, if termination is for non-payment of premium, or
  (ii) 60 days notice of termination by registered mail if termination is for any other reason.

Registered mail termination takes effect 15 or 60 days after receipt of the letter by the post office to which it is addressed, depending upon the reason for termination.

(c) To the extent that the Civil Code of the Province of Quebec is applicable to this Policy General Conditions and Provisions as set out in the Civil Code of the Province of Quebec apply. Accordingly, we may terminate this Policy by giving to the first Named Insured
  (i) 15 days notice of termination by registered mail if termination is for non-payment of premium; or
  (ii) 60 days notice of termination by registered mail if termination is for any other reason.

Registered mail termination takes effect 15 or 60 days after receipt of the notice at the last known address of the first Named Insured, depending upon the reason for termination.

(d) The policy period will end on the date termination takes effect.

(e) If this Policy is terminated, we will send the first Named Insured any premium refund due. If we terminate, the refund will be pro rata. If the first Named Insured terminates, the refund may be less than pro rata. The termination will be effective even if we have not made or offered a refund.

14. TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

If the insured has rights to recover all or part of any payment we have made under this Policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "action" or transfer those rights to us and help us enforce them.

15. TRANSFER OF YOUR RIGHTS AND DUTIES UNDER THIS POLICY

Your rights and duties under this Policy may not be transferred without our written consent except in the case of death of an individual Named Insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

16. CONFLICT IN CONDITIONS

If the conditions of this manuscript are in conflict with the conditions required by law to be contained in this Policy, (that is, “Statutory Conditions”, “Conditions of The Policy – Quebec” and “Variations In Conditions – Quebec”), the terms most favorable to the Insured will prevail.

SECTION V – DEFINITIONS

1. "Action" means a civil proceeding in which "compensatory damages" because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Action" includes:
   (a) An arbitration proceeding in which such "compensatory damages" are claimed and to which the insured must submit or does submit with our consent; or

(b) Any other alternative dispute resolution proceeding in which such "compensatory damages" are claimed and to which the insured submits with our consent.

2. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
   (a) Notices that are published include material placed on the Internet or on similar electronic means of communication; and
   (b) Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

3. "Automobile" means a land motor vehicle, trailer or semi trailer that is required by law to be insured under a contract evidenced by a motor vehicle liability policy, or any vehicle insured under such a contract, including any attached machinery or equipment.

4. "Bodily injury" means bodily injury, sickness or disease, mental suffering, mental injury, mental anguish and shock sustained by a person, including death resulting from any of these at any time.

5. "Compensatory damages" means damages due or awarded in payment for actual injury or economic loss. "Compensatory damages" does not include punitive or exemplary damages or the multiple portion of any multiplied damage award.

6. "Coverage territory" means:

   (a) Canada and the United States of America (including its territories and possessions);
   (b) International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in a. above; or
   (c) All other parts of the world if the injury or damage arises out of:
      (i) Goods or products made or sold by you in the territory described in a. above;
      (ii) The activities of an insured person whose home is in the territory described in a. above, but is away for a short time on your business; or
      (iii) "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication provided the insured's responsibility to pay "compensatory damages" is determined in an "action" on the merits, in the territory described in (a) above.

   If a claim is made or an "action" is brought elsewhere than within the territory described in (a) above, we will have the right but not the duty to investigate and settle such claim and defend such "action". With respect to any claim or "action" which we elect not to investigate, settle or defend you will, under the our supervision, make or cause to be made such investigation and defense as are necessary and subject to prior authorization by us, will effect to the extent possible such settlement or settlements as deemed prudent. We will reimburse you for the reasonable costs of such investigation, settlement or defense up to the sublimit as shown on the Declaration Page.

7. "Electronic data" means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

8. "Employee" includes a "leased worker" and a "temporary worker".

9. "Executive officer" means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.

10. "Fissionable substance" means any prescribed substance that is, or from which can be obtained, a substance capable of releasing atomic energy by nuclear fission.

11. "Fungi" includes, but is not limited to, any form or type of mould, yeast, mushroom or mildew whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any "fungi" or "spores" or resultant mycotoxins, allergens or pathogens.

12. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.

13. "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:

   (a) It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
   (b) You have failed to fulfill the terms of a contract or agreement;

   if such property can be restored to use by:

(a) The repair, replacement, adjustment or removal of "your product" or "your work"; or
(b) Your fulfilling the terms of the contract or agreement.

14. “Incidental medical malpractice injury” means “bodily injury” arising out of the rendering of or failure to render, during the policy period, the following services:

(a) medical, surgical, dental, x-ray or nursing services or treatment or the furnishing of food or beverages in connection therewith; or
(b) the furnishing or dispensing of drugs or medical, dental or surgical supplies or appliances;

by any insured or any indemnitee causing the "incidental medical malpractice injury" who is not engaged in the business or occupation of providing any of the services described in (a) and (b) above.

15. “Insured contract” means:

(a) a lease of premises;
(b) a sidetrack agreement;
(c) an easement or license agreement in connection with vehicle or pedestrian private railroad crossings at grade;
(d) any other easement agreement;
(e) an indemnification of a municipality as required by ordinance, except in connection with work for a municipality;
(f) an elevator maintenance agreement; or
(g) that part of any other contract or agreement pertaining to the Named Insured’s business (including an indemnification of a municipality in connection with work performed for a municipality) under which the Named Insured assumes the tort liability of another to pay compensatory damages because of “bodily injury”, “property damage” or “personal and advertising injury ” to a third party or organization, if the contract or agreement is made prior to such “bodily injury”, “property damage” or “personal and advertising injury”. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

An “insured contract” does not include that part of any contract or agreement:

(i) that indemnifies an architect, engineer or surveyor for “bodily injury” or “property damage” arising out of:
a) preparing, approving or failing to prepare or approve maps, drawings, opinions, reports, surveys, change orders, designs or specifications; or
b) giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;
(ii) under which the Insured, if an architect, engineer or surveyor, assumes liability for injury or damage arising out of the Insured’s rendering or failing to render professional services, including those listed in (i) above and supervisory, inspection or engineering services.

16. “Leased worker” means a person leased to you by a labour leasing firm under an agreement between you and the labour leasing firm, to perform duties related to the conduct of your business. “Leased worker” does not include a “temporary worker”.

17. “Loading or unloading” means the handling of property:

(a) After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or “automobile";
(b) While it is in or on an aircraft, watercraft or "automobile";
(c) While it is being removed from an aircraft, watercraft or "automobile" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "automobile".

18. "Nuclear energy hazard" means the radioactive, toxic, explosive, or other hazardous properties of "radioactive material".

19. "Nuclear facility" means:

(a) any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of plutonium, thorium and uranium or any one or more of them;
(b) any equipment or device designed or used for (i) separating the isotopes of plutonium, thorium and uranium or any one or more of them, (ii) processing or packaging waste;
(c) any equipment or device used for the processing, fabricating or alloying of plutonium, thorium or uranium enriched in the isotope uranium 233 or in the isotope uranium 235, or any one or more of them if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or

contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

(d) any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste "radioactive material";

and includes the site on which any of the foregoing is located, together with all operations conducted thereon and all premises used for such operations.

20. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

21. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

(a) False arrest, detention or imprisonment;
(b) Malicious prosecution;
(c) Discrimination (unless prohibited by law);
(d) Humiliation;
(e) The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
(f) Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
(g) Oral or written publication, in any manner, of material that violates a person's right of privacy;
(h) The use of another's advertising idea in your "advertisement"; or
(i) Infringing upon another's copyright, trade dress or slogan in your "advertisement".

22. "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, odour, vapour, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

23. "Products-completed operations hazard":

(a) Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:
  (i) Products that are still in your physical possession; or
  (ii) Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:
    a) When all of the work called for in your contract has been completed;
    b) When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site;
    c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

  Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

(b) Does not include "bodily injury" or "property damage" arising out of the existence of tools, uninstalled equipment or abandoned or unused materials.

24. “Professional Services” shall include but not be limited to:

(a) Medical, surgical, dental, x-ray or nursing service or treatment, or the furnishing of food or beverages in connection there with, however the furnishing of food or beverages as the sole function of the Insured is not “professional services”;
(b) Any professional service or treatment conducive to health;
(c) Professional services of a pharmacist;
(d) The furnishing or dispensing of drugs or medial dental or surgical supplies or appliances;
(e) The handling or treatment of deceased human bodies including autopsies, organ donations or other procedures;
(f) Any cosmetic body piercing tonsorial, massage, physiotherapy, chiropody, hearing aid, optical or optometrical services or treatments;
(g) Engineering, design, architectural, draftsperson or surveying services including:
the preparation, approval, or failure to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications;
(h) Supervisory, inspection, architectural, design or engineering activities;
(i) Accountant’s, advertiser’s, notary’s (Quebec), public notary’s, paralegal’s, lawyer’s, real estate broker’s or agent’s, insurance broker’s or agent’s travel agent’s, financial institution’s or consultant’s professional advice or activities;
(j) Any computer programming or re-programming, consulting, advisory or related services;
(k) Claim investigation, adjustment, appraisal or audit services.

25. "Property damage" means:

(a) Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
(b) Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, "electronic data" is not tangible property.

26. "Radioactive material" means uranium, thorium, plutonium, neptunium, their respective derivatives and compounds, radioactive isotopes of other elements and any other substances which may be designated by any nuclear liability act, law or statute, or any law amendatory thereof, as being prescribed substances capable of releasing atomic energy, or as being requisite for the production, use or application of atomic energy.

27. "Spores" includes, but is not limited to, any reproductive particle or microscopic fragment produced by, emitted from or arising out of any "fungi".

28. "Temporary worker" means a person who is retained by you under a contract of service to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

29. "Terrorism" means an ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.

30. "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

31. "Your product":

(a) Means:
  (i) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
    a) You;
    b) Others trading under your name; or
    c) A person or organization whose business or assets you have acquired; and
  (ii) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

(b) Includes
  (i) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
  (ii) The providing of or failure to provide warnings or instructions.

(c) Does not include vending machines or other property rented to or located for the use of others but not sold.

32. "Your work":

(a) Means:
  (i) Work or operations performed by you or on your behalf; and
  (ii) Materials, parts or equipment furnished in connection with such work or operations.

(b) Includes
  (i) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work", and
  (ii) The providing of or failure to provide warnings or instructions.

DESCRIPTION OF TERMS USED FOR RATING BASIS

Area – The total number of square meters of floor space at the insured premises, excluding that portion of basements used exclusively for storage or that portion of the premises used for heating or air conditioning plant purposes.

Rates apply per 100 square meters of area.

Basic – A basic charge is in addition to the premium developed from the application of exposure charges and applies per location.

Cost of Work (For work sublet to others) – The total cost of all operations performed for you by independent contractors, including the cost of materials furnished, used or delivered for use in the execution of the work.

Rates apply per $1,000 of cost of work.

Admissions – The total number of persons, other than your employees, admitted to the event insured or to events conducted on the premises whether on paid admissions, tickets, complimentary tickets or passes.

Rates apply per 100 admissions.

Payroll – The total earnings for each owner, partner, executive officer and employee.

Rates apply per $1,000 of payroll.

Revenue – The gross amount of money charged for all work or services performed by or on your behalf or for goods and products sold and distributed by you or by others trading under the your name.

Rates apply per $1,000 of revenue.

Each – The unit of exposure is indicated in the Liability Rating Schedule.

Rates apply per unit of exposure.
Units – A single room or group of rooms intended for occupancy as separate living quarters by a family, by a group of unrelated persons living together or by a person living alone.

Rates apply per unit.

Other – Rates apply per designated article. (i.e. person, object, event)

AMENDMENT – AUTOMOBILE EXCLUSION

This Endorsement Modifies Coverages Provided Under This Commercial General Liability Policy.

EXCLUSION F. – AUTOMOBILE UNDER PARAGRAPH 2. EXCLUSIONS OF SECTION I – COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY, ITEM (C) IS DELETED AND REPLACED BY THE FOLLOWING:

(c) the ownership, use or operation of machinery, apparatus or equipment mounted on or attached to any vehicle while at the site of the use or operation of such equipment, but this exception does not apply when such equipment is used for the purpose of “loading or unloading” except where such coverage is specifically regulated by any provincial or territorial insurance act.

LBT001E

EMPLOYEE BENEFITS LIABILITY ENDORSEMENT

THIS ENDORSEMENT MODIFIES COVERAGES PROVIDED UNDER THIS COMMERCIAL GENERAL LIABILITY POLICY.

1. INSURING AGREEMENT

The Insurer agrees to pay on behalf of the "Insured" all sums which the "Insured" shall become legally obligated to pay as compensatory damages on account of injury to any "covered employee", or to the dependents or the beneficiaries or legal representatives thereof and caused by any negligent act, error or omission of the "Insured", or any other person for whose acts the "Insured" is legally liable in administration of the Named Insured's "employee benefits" programs as defined herein. The Insurer will have the right and duty to defend any "action" seeking those compensatory damages, but, the Insurer's right and duty to defend end when the Insurer has used up the applicable limit of liability in the payment of judgments or settlements.

2. DEDUCTIBLE

In the event of a claim the applicable Deductible stated in the "Declarations" shall be deducted from the amount of each claim when determined, and the Insurer shall be liable for loss only in excess of the amount deducted.
The Insurer may pay any part or all of the deductible amount to effect settlement of any claim and, upon notification, the Named Insured shall promptly reimburse the Insurer for the deductible amount paid by the Insurer.

3. POLICY PERIOD AND TERRITORY

This coverage applies only to claims resulting from negligent acts, errors or omissions of the "Insured", or any other persons for whose acts the "Insured" is legally liable in the administration of "employee benefits" programs occurring in the "coverage territory", provided such claim is first brought against the Named Insured during the policy period and the Named Insured, at the effective date of this endorsement, had no knowledge of or could not have reasonably foreseen any circumstances which might result in a claim or "action". A claim by any "covered employee" or the dependents or beneficiaries or legal representatives of any "covered employee" seeking compensatory damages will be deemed to have been made when notice of such claim is received and recorded by any "Insured" or by the Insurer, whichever comes first. All claims for compensatory damages because of injury to the same "covered employee" including compensatory damages claims by any beneficiary, dependent or legal representative, arising out of the same act, error or omission will be deemed to have been made at the time the first of those claims is made against any insured.

4. DEFINITIONS

In this endorsement the words and terms noted below have the following meaning:

(a) "Insured" - includes not only the Named Insured, but also any partner, executive officer, director, stockholder or employee or any former partner, executive officer, director, stockholder or employee, provided such employee is or was authorized to act in the "administration" of the Named Insured's "employee benefits" programs.

(b) "Employee benefits" - means group life insurance, group accident or health insurance, profit sharing plans, pension plans, employee stock subscription plans, workers compensation, unemployment insurance, social security and disability benefits, travel, savings or vacation plans and any other similar plan.

(c) "Administration" - means:

(i) giving counsel to "covered employees" with respect to the "employee benefits" programs

(ii) interpreting the "employee benefits" programs

(iii) handling of records in connection with the "employee benefits" programs

(iv) effecting enrollment, termination or cancellation of "covered employees" under the "employee benefits" programs provided all such acts are authorized by the Named Insured.

(d) "Covered employee" - means Named Insured's prospective, present or former employee.

(e) "Coverage territory" - means Canada and the United States of America (including its territories and possessions).

5. EXCLUSIONS

This coverage does not apply to:

(a) any dishonest, fraudulent, criminal or malicious acts or omissions, libel, slander, discrimination, or humiliation;

(b) "bodily injury" including compensatory damages for care and loss of services arising therefrom; "property damage" or "personal and advertising injury";

(c) any claim for failure of performance of contract by an Insurer, or any other party, including the "Insured", obligated to afford the benefits;

(d) any claim based upon the "Insured's" failure to comply with any law concerning workers compensation, unemployment insurance, social security or disability benefits;

(e) any claim based upon:

(i) failure of stock, bonds, or other securities to perform as represented by an "Insured" including but not limited to their failure to produce financial gain, profit or growth;

(ii) advice given by an "Insured" to a "covered employee" to participate or not to participate in stock subscription plans.

(f) any claim based upon any actual or alleged error or omission or breach of duty, committed or alleged to have been committed by a trustee in the discharge of fiduciary duties, obligations or responsibilities imposed by the Pension Reform Act of 1974 or the Federal Employee Retirement Income Security Act of 1974 or Title X of the Consolidated Omnibus Budget Reconciliation

Act of 1985 (Public Law 99-272) or Section 9319 of the Omnibus Budget Reconciliation Act of 1986 (Public Law 99-509) or any amendments to these Acts;

(g) any liability imposed by the Employee Retirement Income Security Act of 1974 (or any amendment or addition thereof), or any statute or common law rule which imposes fiduciary duties and responsibilities with respect to an “employee benefits” program.

6. LIMIT OF INSURANCE

The Limit of Insurance stated in the “Declarations” as applicable to each claim is the limit of the Insurer’s liability for all compensatory damages incurred as the result of any one claim insured hereunder, but each claim made shall be subject to the deductible amount stated in the “Declarations” and the Insurer shall be liable only for the difference between such deductible amount and the Limit of Insurance for each claim; the limit of such liability stated in the “Declarations” as accumulated is, subject to the above provisions respecting each claim, the total limit of the Insurer’s liability for all compensatory damages insured hereunder.

The payment of any deductible amount by the “Insured” shall not operate to reduce the limit of the Insurer’s liability.

The aggregate Limit of Insurance shall apply separately to each annual period this insurance is in force.

The inclusion herein of more than one “Insured” shall not operate to increase the limits of Insurer’s liability.

Additional Conditions

When the “Insured” becomes aware of any act of negligence, error, mistake or omission, the “Insured” or someone on the “Insured’s” behalf shall give written notice thereof to the Insurer or any of its authorized agents as soon as practicable. Such notice shall contain particulars sufficient to identify the “Insured” and also reasonably obtainable information respecting the time, place and circumstances of the negligence, error, mistake or omission.

If claim is made or suit is brought against the “Insured”, the “Insured” shall immediately forward to the Insurer every demand, notice, summons, or other process received by the “Insured” or the “Insured’s” representative.

LBT004E

FIRE FIGHTING EXPENSES ENDORSEMENT

THIS ENDORSEMENT MODIFIES COVERAGES PROVIDED UNDER THIS COMMERCIAL GENERAL LIABILITY POLICY.

The Insurer agrees to pay those expenses incurred for the controlling or suppression of forest fires, such expenses having been incurred by others and for which the Insured shall become legally obligated to pay under the provisions of any applicable law, ordinance or regulation.
It is further agreed that, notwithstanding anything contained in this Policy to the contrary, the coverage provided by this Policy does not apply to:

1. Expenses incurred by or on behalf of an Insured for the use of their own employees, machinery or other property, in controlling or suppressing fires.
2. The cost of controlling and extinguishing fires if it is found there has been any contravention by the Insured of the terms and conditions as set out in any relative Provincial Forest Fire Act in respect of the lighting, controlling or extinguishing of fires.

The total limit of the Insurer's liability for the expenses of controlling or suppressing fires as a result of any one fire, or series of fires resulting from one cause, shall be as cited in the Declarations as applicable to Fire Fighting Expenses.
The Insurer's liability for the expenses of controlling or suppressing fires shall apply only to amounts in excess of the amount of the deductible as cited in the Declarations, which amount shall be paid by the Insured.

LBT005E

LLOYD'S

linx UNDERWRITING

SPF NO. 6
NON-OWNED AUTOMOBILE LIABILITY INSURANCE ENDORSEMENT

This Endorsement Modifies Coverages Provided Under This
Commercial General Liability Policy.

THIRD PARTY LIABILITY

Subject to the limit of insurance stated in the Declarations as applicable to Non-Owned Automobile Liability such limit shall apply (exclusive of interest and costs) for loss or damage resulting from bodily injury to or death of one or more persons and for loss or damage to property, regardless of the number of claims arising from any one accident.

INSURING AGREEMENT

Now, therefore, in consideration of the payment of the premium specified and subject to the limits, terms, conditions, provisions, definitions and exclusions herein stated:

SECTION A - THIRD PARTY LIABILITY

The Insurer agrees to indemnify the Insured against the liability imposed by law upon the Insured for loss or damage arising from the use or operation of any automobile not owned in whole or in part by or licensed in the name of the Insured, and resulting from:

BODILY INJURY TO OR THE DEATH OF ANY PERSON OR DAMAGE TO PROPERTY OF OTHERS NOT IN THE CARE, CUSTODY OR CONTROL OF THE INSURED

Provided always the Insurer shall not be liable under this Policy:

(a) For any liability which arises from the use or operation of any automobile while personally driven by the Named Insured if the Named Insured is an individual; or

(b) For any liability imposed upon any person insured by this Policy:
  (1) By any workers' compensation law; or
  (2) By any law for bodily injury to or the death of the "Insured" or any partner, officer or employee of the "Insured" while engaged in the business of the Insured; or

(c) For loss or damage to property carried in or upon an automobile personally driven by any person insured by this Policy or to any property owned or rented by, or in the care, custody or control of any such person; or

(d) For any amount in excess of the limit stated above, and expenditures provided for in the Additional Agreements of this Policy: subject always to the provisions of the section of the Insurance Act (Automobile Insurance Part) relating to the "nuclear energy hazard".

Not applicable in the Province of Ontario

ADDITIONAL AGREEMENTS OF INSURER

Where indemnity is provided by this Policy, the Insurer further agrees:

(1) Upon receipt of notice of loss or damage caused to persons or property to serve any person insured by this Policy by such investigation thereof, or by such negotiations with the claimant, or by such settlement of any resulting claims as may be deemed expedient by the Insurer; and

(2) To defend in the name and on behalf of any person insured by this Policy and at the cost of the Insurer any civil action which may at any time be brought against such person on account of such loss or damage to persons or property; and

(3) To pay all costs taxed against any person insured by this Policy in any civil action defended by the Insurer and any interest accruing after entry of judgment upon that part of the judgment which is within the limits of the Insurer's liability; and

(4) In case the injury be to a person, reimburse any person insured by this Policy for outlay for such medical aid as may be immediately necessary at the time of such injury; and

(5) To be liable to the minimum limit(s) prescribed for that province or territory of Canada in which the accident occurred, but not more than the limit applicable to non-owned automobile as shown in the Declarations; and

(6) Not set up any defense to a claim that might not be set up if the policy were a motor vehicle liability policy issued in the Province or Territory of Canada in which the accident occurred.

AGREEMENTS OF INSURED

Where Indemnity is provided by this section, every person insured by this Policy:

(a) By the acceptance of this Policy, constitutes and appoints the Insurer his irrevocable attorney to appear and defend in any province or territory of Canada in which action is brought against the Insurer arising out of the use or operation of an automobile with respect to which insurance is provided hereunder;

(b) Shall reimburse the Insurer, upon demand, in the amount which the Insurer has paid by reason of the provisions of any statute relating to automobile insurance and which the Insurer would not otherwise be liable to pay under this Policy.

GENERAL PROVISIONS AND DEFINITIONS

1. Additional Insureds

The Insurer agrees to indemnify in the same manner and to the same extent as if named herein as the Insured, every partner, officer or employee of the Insured who with the consent of the owner thereof, personally drives (a) in the business of the Insured any automobile not owned in whole or in part by or licensed in the name of (i) the Insured; or (ii) such additional insured person; or (iii) any person or persons residing in the same dwelling premises as the Insured or such additional insured person; or (b) any automobile hired or leased in the name of the "Insured" except an automobile owned in whole or in part or licensed in the name of such additional insured person.

2. Territory

This Policy applies only to the use or operation of automobiles within Canada or the United States of America or upon a vessel plying between ports of those countries.

3. Hired Automobiles Defined

"Hired automobiles" - as used in this Policy means automobiles hired, leased, or borrowed from others with or without drivers, used under the control of the Insured in the business and for incidental personal use of the Insured, but shall not include any automobile owned in whole or in part by or licensed in the name of the Insured or any partner, officer or employee of the Insured.

4. Automobiles Operated Under Contract Defined

"Automobiles operated under contract" - as used in this Policy means automobiles operated in the business of the "Insured" where the complete supervision, direction and control of such automobiles remain with the owner thereof, but shall not include any automobile owned in whole or in part by or licensed in the name of the "Insured" or any partner, officer, or employee of the Insured.

5. Two or More Automobiles

When two or more automobiles are insured hereunder the terms of this Policy shall apply separately to each, but a motor vehicle and a trailer or trailers attached thereto shall be held to be one automobile as respects limits of liability under Section A.

STATUTORY CONDITIONS

The Statutory Conditions of the Non-Owned Automobile Policy as set out in the Insurance Act of the Province in which this Policy is issued shall be deemed to form part of this Policy except the Cancellation Condition of this Policy shall apply in place of the termination condition therein.

LBT009E

SEF NO. 94
LEGAL LIABILITY FOR DAMAGE TO HIRED AUTOMOBILES ENDORSEMENT

(FOR ATTACHMENT ONLY TO A NON-OWNED AUTOMOBILE LIABILITY INSURANCE ENDORSEMENT SPF NO.6)
THIS ENDORSEMENT MODIFIES COVERAGES PROVIDED UNDER THIS
COMMERCIAL GENERAL LIABILITY POLICY.

LEGAL LIABILITY FOR DAMAGE TO HIRED AUTOMOBILES

The Insurer agrees to indemnify the Insured against the liability imposed by law upon the Insured or assumed by him under any Contract or agreement for loss or damage arising from the care, custody and control of hired automobiles (as defined in such Non-owned Automobile Liability Insurance endorsement) and resulting from loss or damage thereto, caused solely by All Perils.

DEDUCTIBLE CLAUSE

Each occurrence causing loss or damage covered under this endorsement except loss or damage caused by fire or lightning or theft of the entire automobile covered by this endorsement shall give rise to a separate claim in respect of which the Insurers liability shall be limited to the amount of loss or damage in excess of the deductible stated in the Declarations.

TWO OR MORE AUTOMOBILES

A motor vehicle and one or more trailers or semi-trailers attached thereto shall be held to be separate automobiles with respect to the limit of liability, including the deductible provision, if any, under this Insuring Agreement.

EXCLUSIONS

The Insurer shall not be liable

(1) For loss or damage to any automobile while personally driven by the Named Insured if the Named Insured is an individual; or

(2) For loss or damage

- (a) to tires or consisting of or caused by mechanical fracture or breakdown of any part of an automobile or by rusting, corrosion, wear and tear, freezing or explosion within the combustion chamber, unless the loss or damage is coincident with other loss or damage covered by such subsection or is caused by fire, theft or malicious mischief covered by such subsection; or
- (b) to any automobile while being used without the consent of the owner thereof; or
- (c) caused directly or indirectly by contamination by radioactive material; or
- (d) to contents of trailers or to rugs or robes; or
- (e) to tapes and equipment for use with a tape recorder when detached therefrom; or
- (f) caused directly or indirectly by bombardment, invasion, civil war, insurrection, rebellion, revolution, military or usurped power, or by the operation of armed forces while engaged in hostilities whether war be declared or not; or
- (g) for any amount in excess of the limit stated below and expenditures provided for in the Additional Agreements of the policy to which this endorsement is attached.

ADDITIONAL AGREEMENT

The Insurer further agrees to pay general average, salvage and fire department charges and custom duties of Canada or of the United States of America for which the Insured is legally liable.

LIMIT

All Perils **As per declarations page** (exclusive of interests and costs) any one accident

LBT007E

LLOYD'S

linx UNDERWRITING

S.E.F. No. 96
Contractual Liability Endorsement

THIS ENDORSEMENT ATTACHES TO THE S.P.F. NO. 6 - NON-OWNED AUTOMOBILE POLICY

Exclusion (c) of the Insuring Agreement of the Policy to which this endorsement is attached is amended to read as follows:

(c) For any liability assumed by any person insured by this Policy voluntarily under any contract or agreement other than those stated below:

All written contracts including any other written agreement assuming the liability of others except:

1. any contract or agreement assuming the legal liability of the automobile owner or lessee;
2. any contract or agreement wherein the Insured has assumed liability for the sole negligence of the indemnitee;
3. the leasing of an automobile(s) for a period in excess of thirty (30) days.

This endorsement is attached to and forms part of this policy and shall be effective from the local time and effective date of the policy or renewal thereof, or if added to the policy during the policy period, from the local time and effective date of the endorsement specifying the addition of this coverage

LBT060E

LLOYD'S

linx UNDERWRITING

O.E.F. 98B
Reduction of Coverage for Lessees or Drivers of Leased Vehicles Endorsement (for attachment only to the Standard Non-Owned Automobile Policy S.P.F. No. 6)

THIS ENDORSEMENT MODIFIES THE COVERAGE PROVIDED UNDER THE COMMERCIAL GENERAL LIABILITY SECTION OF THIS POLICY.

1. Purpose of this endorsement:
This endorsement alters the coverage provided by this policy with respect to claims in Ontario for loss or damage arising directly or indirectly from the use or operation of a motor vehicle that is leased.

2. How the policy coverage is changed:
The Insurer also agrees to pay on behalf of every partner, officer or employee of the Insured who, in the business of the Insured stated in Item 3 of the application, leases an automobile **for a period of not more than 30 days** in their own name, all sums which such partner, officer or employee is legally obligated to pay as a result of liability imposed by law arising from the negligence of the driver of such leased automobile(s).

The insurance provided under this policy with respect to leased automobiles is in excess of the underlying coverage available to the Insured or to the partner, officer or employee of the Insured.

Underlying coverage available to the Insured or to the partner, officer or employee of the Insured includes any motor vehicle liability insurance that is required to respond to the liability of the driver or lessee of the leased automobile.

The terms leased, lease and lessee are used as equivalent to rented, rent and renter.

This endorsement is attached to and forms part of this policy and shall be effective from the local time and effective date of the policy or renewal thereof, or if added to the policy during the policy period, from the local time and effective date of the endorsement specifying the addition of this coverage.

This endorsement only applies if any business of the insured is based in Ontario or if the Insured has any employees domiciled in Ontario.

LBT047E

SEF NO. 99
EXCLUDING LONG TERM LEASED VEHICLE ENDORSEMENT

(FOR ATTACHMENT ONLY TO A NON-OWNED AUTOMOBILE LIABILITY INSURANCE ENDORSEMENT SPF NO. 6)
THIS ENDORSEMENT MODIFIES COVERAGES PROVIDED UNDER THIS
COMMERCIAL GENERAL LIABILITY POLICY.

In consideration of the premium for which this Policy is issued, it is understood and agreed that Item 3 (Hired Automobiles Defined) of General Provisions and Definitions of Supplementary Non-owned Automobile Liability Insurance Endorsement (SPF No. 6) to which this endorsement is attached is hereby amended to read as follows:
"Hired automobiles" - as used in this Policy means (a) automobiles hired, leased or borrowed from others with drivers or (b) hired, leased or borrowed by the Insured from others without driver for periods not exceeding thirty (30) days, used under the control of the Insured in the business and for incidental personal use of the Insured but shall not include any automobile owned in whole or in part by or licensed in the name of the Insured or any partner, officer or employee of the Insured.

LBT008E

USA CONDITIONS

In respect of claims made under the laws of the United States of America and subject to indemnity under this Policy, the following conditions apply:

1. PUNITIVE AND EXEMPLARY DAMAGES EXCLUSION CLAUSE (NMA1933)

Regardless of any other provision of this insurance, this insurance does not apply to punitive or exemplary damages.

2. INDUSTRIES, SEEPAGE, POLLUTION AND CONTAMINATION EXCLUSION CLAUSE No.4 (NMA1686)

This Insurance does not cover any liability for:
1. Personal Injury or Bodily Injury or loss of, damage to or loss of use of property directly or indirectly caused by seepage, pollution or contamination.
2. The cost of removing, nullifying or cleaning-up seeping, polluting or contaminating substances.
3. Fines, penalties, punitive or exemplary damages.

3. Costs and Expenses inclusive within the Limit of Indemnity

LBT076E

Employers Liability Extension

THIS ENDORSEMENT MODIFIES THE COVERAGE PROVIDED UNDER THE
COMMERCIAL GENERAL LIABILITY SECTION OF THIS POLICY

This insurance is extended as follows, but only with respect to bodily injury to your Canadian resident employee arising out of and in the course of employment by you based on the business to which this insurance applies.

Section I Coverage A:
2. Exclusion D. is deleted.
2. Exclusion E. (iv) is deleted and replaced by:
Bodily injury to an employee of the insured if the bodily injury results from an occurrence involving watercraft.
2. Exclusion F. Clause 2. (a) is deleted and replaced by:
Bodily injury to an employee of the insured.

The insurance provided by this Extension does not apply to:
(a) Bodily injury resulting from the acts or omissions of, or bodily injury sustained by, any person employed by the insured in violation of the law as to age; or
(b) Bodily injury arising out of structural alterations which involve changing the size of or moving buildings or other structures, new construction or demolition operations.

Limits of Insurance
The limit of insurance for this Extension as shown on the Declaration Page under this endorsement, shall be part of and not in addition to the Commercial General Liability limits of insurance shown on the Declaration Page or in any amending forms, and shall not be cumulative with any limits of insurance stated elsewhere in this insurance.

Deductible
In the event of a claim under this Extension, the deductible amount as shown on the Declaration Page under this endorsement shall apply.

LBT051E

LIMITED POLLUTION COVERAGE

It is agreed that Item 5 - Pollution of EXCLUSIONS is deleted and replaced with the following:

THIS INSURANCE DOES NOT APPLY TO:

1. Pollution Liability

a) Bodily injury or property damage or personal and advertising injury" arising out of the actual, alleged, potential or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of pollutants:

1) At or from any premises, site or location which is or was at any time, owned or occupied by, or rented or loaned to an Insured;

2) At or from any premises, site or location which is or was at any time, used by or for any Insured or others for the handling, storage, disposal, processing or treatment of waste;

3) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for any Insured or any person or organization for whom the Insured may be legally responsible; or

4) At or from any premises, site or location on which any Insured or any contractors or subcontractors working directly or indirectly on any Insured's behalf are performing operations:

i) if the pollutants are brought on or to the premises, site or location in connection with such operations by such Insured, contractor or subcontractor; or

ii) if the operations are to test for, monitor, cleanup, remove, contain, treat, detoxify, decontaminate, stabilize, remedy or neutralize, or in any way respond to, or assess the effect of pollutants.

Sub-paragraphs (1) and (4)(i) of paragraph (a) of this exclusion do not apply to bodily injury or property damage or personal and advertising injury caused by:

i) heat, smoke or fumes from a fire which becomes uncontrollable or breaks out from where it was intended to be; or

ii) an unexpected or unintentional spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of pollutants provided such discharge, emission, dispersal, seepage, leakage, migration, release or escape of pollutants:

1) results in the injurious presence of pollutants in or upon land, the atmosphere, drainage or sewage system, watercourse or body of water; and

2) is detected within one hundred and twenty (120) hours after the commencement of the spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape; and

3) is reported to the Insurer within one hundred and twenty (120) hours of being detected; and

4) does not occur in a quantity or with a quality that is routine or usual to the business of the Insured.

b) Any loss, cost or expense arising out of the request, demand or order that any Insured or others test for, monitor, clean-up, remove, contain, treat, detoxify, decontaminate, stabilize, remedy or neutralize or in any way respond to, or assess the effect of pollutants.

c) Fines, penalties, punitive or exemplary damages arising directly or indirectly out of the discharge, dispersal, release or escape of any pollutants.

Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, odour, vapour, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

Regardless of the number of Insureds under this Form or the number of claims made or suits brought, the Insurers liability is limited to:

1. The limit of liability applicable to each occurrence is stated in the Declarations.

2. The limit of liability stated in the Declarations as aggregate is the total limit of the Insurers liability for all compensatory damages arising out of pollution liability in any one period of twelve months terminating on the anniversary of the inception date of the policy.

3.

a) The Insurers obligation to pay compensatory damages on behalf of the Insured applies only to the amount of compensatory damages in excess of the deductible amount(s) stated in the Declarations;

b) the deductible amount applies to all compensatory damages because of bodily injury or property damage as a result of any one occurrence;

c) The terms of the policy, including those with respect to:

i. the Insurers rights and duties with respect to defence of an action; and
ii. the Insureds duties in the event of an accident, apply irrespective of the application of the deductible amount;

d) the Insurer may pay any part of all of the deductible amount of effect settlement of a claim or action and, upon notification of the action taken, the Named Insured shall promptly reimburse the Insurer for such part of the deductible amount as has been paid by the Insurer.

LBT118E

BLANKET CERTIFICATE HOLDER AS ADDITIONAL INSURED

It is hereby understood and agreed that that permission is granted for the Insured to provide certificates of insurance (to be obtained from the insured's broker only) evidencing to any of their clients that the client has been added to the above referenced policy as an Additional Insured solely with regard to the operations of the Insured.

Anti-Stacking Endorsement

It is hereby understood and agreed that the following condition is added to the Policy:

If this (re)insurance and any other (re)insurance provided by the (Re)Insurers apply to the same claim, suit or occurrence, the maximum limit of (re)insurance available under all (re)insurance available will not exceed the highest applicable limit of (re)insurance available under any one policy.

All other terms, conditions and exclusions remain unaltered.

CM004E

PURE FINANCIAL LOSS EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

This Policy does not cover liability for Financial Loss

Financial Loss shall mean a pecuniary or economic loss or expense sustained by a third party resulting from the operations of the Insured and not consequent upon Personal Injury or Property Damage.

LBT107E

ERRORS & OMISSIONS EXCLUSION

This policy shall not apply to any claim for liability arising out of the negligence, error or omission, malpractice or mistake in providing or failing to provide services of a professional nature committed or alleged to have been committed by or on behalf of the Insured in the conduct of any of the Insured's business activities. Professional services includes, but is not limited to Consulting, Advisory and Related Services.

LBT130E

CYBER AND DATA EXCLUSION

(for attachment to Canadian Liability forms)

1. Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:

   1.1 **Cyber Act** or **Cyber Incident** including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any **Cyber Act** or **Cyber Incident**;

   1.2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any **Data**, including any amount pertaining to the value of such **Data**; or

   1.3 complaint, investigation, or proceedings arising directly or indirectly from a breach or alleged breach of the Personal Information Protection and Electronic Documents Act, the Canada Anti-Spam Legislation, any Privacy Act, or any similar Canadian, Provincial or Territorial statute or regulation,

   regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

3. This endorsement supersedes any other wording in the Policy or any endorsement thereto having a bearing on a **Cyber Act**, **Cyber Incident** or **Data**, and, if in conflict with such wording, replaces it.

DEFINITIONS

4. **Computer System** means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any

configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

5. **Cyber Act** means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any **Computer System**.

6. **Cyber Incident** means:

   6.1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any **Computer System**; or

   6.2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any **Computer System**.

7. **Data** means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a **Computer System**.

21 December 2020

LMA5528

COMMUNICABLE DISEASE EXCLUSION

1. Notwithstanding any provision to the contrary within this policy, this policy excludes any loss, damage, liability, claim, cost or expense of whatsoever nature, directly or indirectly caused by, contributed to by, resulting from, arising out of, or in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
   2.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and

   2.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and

   2.3. the disease, substance or agent can cause or threaten bodily injury, illness, damage to human health, human welfare or property.

March 2020

LMA5396

ABUSE OR MOLESTATION EXCLUSION

THIS ENDORSEMENT MODIFIES COVERAGES PROVIDED UNDER THIS COMMERCIAL GENERAL LIABILITY POLICY.

This insurance does not apply to claims against:

(1) any insured; or

(2) any employee, agent, servant, officer, director or member of any insured; or

(3) any person performing volunteer services for and/or on behalf of any insured,.

arising out of sexual molestation, sexual harassment, corporal punishment or physical or mental abuse or harassment whether actual or alleged; or

the transmission of disease arising out of any act referred to in the above paragraph; or

the failure to take all reasonable and proper steps to guard against the possibility of the foregoing.

LBT015E

LLOYD'S

linx UNDERWRITING

MARINE LIABILITY EXCLUSION

It is hereby understood and agreed that there shall be NO COVERAGE provided under this policy for any claim, either direct or consequential, arising out of any Maritime Liability.

This includes, but is not limited to the following:

1. Terminal Operators Liability
2. Stevedores Liability
3. Wharfingers Liability
4. Protection and Indemnity including Collision
5. Charterers Liability
6. Safe Berth Legal Liability
7. Ship Builders / Ship Repairers Liability
8. Towers Liability
9. Jones Act Coverage / Maritime Employers Liability
10. U.S Longshoreman and Harbor Workers Liability

It is further understood and agreed that this policy shall not provide coverage for:

a. Liability arising out of the fueling of any watercraft and or the loading or unloading of any fuel to or from any watercraft in the Insureds care custody or control;

b. Bodily Injury to passengers;

c. Damage to or destruction of any dock, pier, harbor, bridge, buoy, lighthouse, breakwater structure, beacon, cable or any fixed or movable object or property, by any watercraft excluded by this Policy, for which the Insured may be held liable;

d. Liability for cost or expenses of, or incidental to, the removal of the wreck of any vessel.

LBT117E